

Smt Ramya H N vs State Of Karnataka on 10 April, 2026

Author: S.R.Krishna Kumar

Bench: S.R.Krishna Kumar

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NC: 2026:KHC:20250
WP No. 26495 of 2025

HC - KAR

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 10TH DAY OF APRIL, 2026

BEFORE

THE HON'BLE MR. JUSTICE S.R.KRISHNA KUMAR
WRIT PETITION NO. 26495 OF 2025 (S-RES)

BETWEEN:

SMT. RAMYA H. N.
W/O SANTHOSH M.P.
AGED ABOUT 39 YEARS
FORMERLY WORKED AS
ASSISTANT PROFESSOR IN
AGRICULTURAL ENGINEERING
OFFICE OF UNIVERSITY OF AGRICULTURAL SCIENCE
KAREKERE, HASSAN - 573 225
NEAR THAMALAPURA RING ROAD CIRCLE
NANDINI PARLOUR, HEMAVATHI NAGAR
HASSAN - 573 201.

...PETITIONER

(BY SRI. V. LAKSHMI NARAYANA, SENIOR COUNSEL FOR
SRI. VIKRAM BALAJI & SMT. ANUSHA L., ADVOCATES)

AND:

Digitally
signed by
CHANDANA
BM

Location:
High Court
of Karnataka

1. STATE OF KARNATAKA
REP. BY ITS PRINCIPAL SECRETARY

DEPARTMENT OF AGRICULTURE,
4TH FLOOR, M.S. BUILDING,
BENGALURU - 560 00.

2. THE UNIVERSITY OF AGRICULTURAL SCIENCE
REPRESENTED BY ITS REGISTRAR,

REGISTRAR OFFICE GKV
BENGALURU - 560 065.

3. VICE CHANCELLOR,
CHAIRMAN OF SELECTION COMMITTEE
UNIVERSITY OF AGRICULTURAL SCIENCE,
GKV, BENGALURU - 560 065.

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4. THE ADMINISTRATIVE OFFICER
UNIVERSITY OF AGRICULTURAL SCIENCE
GKV, BENGALURU - 560 065.

5. THE DEAN (AGRICULTURE)
UNIVERSITY OF AGRICULTURAL SCIENCE
KARAKERE, HASSAN - 563 225.

...RESPONDENTS

(BY SMT. SARITHA KULKARNI, AGA FOR R1;
SRI. M. SREENIVASA, ADVOCATE FOR R2 TO R5)

THIS W.P. IS FILED UNDER ARTICLE 226 OF THE
CONSTITUTION OF INDIA PRAYING TO ISSUE A WRIT OF
MANDAMUS DIRECTING THE RESPONDENTS TO GIVE EFFECT TO
THE RESOLUTION PASSED BY THE BOARD OF MANAGEMENT OF
THE RESPONDENT-UNIVERSITY IN ITS 406TH MEETING HELD ON
23.04.2025, AS EVIDENT FROM LETTER DATED 21.05.2025 AS PER
ANNEXURE-C, FORTHWITH AND WITHOUT AWAITING FURTHER
APPROVAL FROM THE GOVERNMENT AND ETC.,

THIS PETITION, COMING ON FOR ORDERS, THIS DAY,
ORDER WAS MADE THEREIN AS UNDER:

CORAM: HON'BLE MR. JUSTICE S.R.KRISHNA KUMAR

ORAL ORDER

In this petition, the petitioner seeks the following reliefs:

"a) Issue a Writ of Mandamus directing the respondents to give effect to the resolution passed by the Board of Management of the Respondent-University in its 406th Meeting held on 23.04.2025, as evident from letter dated 21.05.2025 as per Annexure-C, forthwith and without awaiting further approval from the Government;

b) Alternatively, direct the respondent-Government permitting to implement the resolution dated NC: 2026:KHC:20250 HC-KAR 23.04.2025 and to appoint the petitioner in view of the decision rendered by the Hon'ble Court in W.A.No.968/1998 (Annexure-F), and the Apex Court, including two decisions rendered by the KAT in Application No.1392/2023 (Annexure-D) and RA No.112/2024 (Annexure-E)

c) Issue a Writ of Mandamus directing the respondents to implement the decision of this Hon'ble Court dated 23.09.2023 in W.P.No.18512/2023 as per Annexure-

B.

d) Pass any appropriate writ or orders or any other directions in the circumstances of the case to meet the ends of justice."

e) Issue a Writ of Certiorari to quash the endorsement dated 30.10.2025 as per Annexure-J as arbitrary, violative of Article 14 and 16 of the Constitution of India and is in violation of principles of nature justice;

f) Declare that the State Government has no power to reject the proposal sent by the University and the Respondent - University may be directed to implement the resolution in its 406th meeting held on 23.04.2025 in the interest of justice and equity."

2. Heard learned Senior counsel for the petitioner, learned AGA for respondent No.1 and learned counsel for respondent Nos.2 to 5 and perused the material on record.

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3. A perusal of the material on record will indicate that the petitioner was initially appointed as an Assistant Professor of Agricultural University in respondent Nos.2 and 3 - University. The appointment of the petitioner was challenged by one Smt. Prakruthi N. Rajgangadkar in W.P.No.9340/2013, in which the petitioner herein was arrayed as respondent No.4 and the said petition came to be allowed by a Co-ordinate Bench of this Court vide final order dated 18.04.2023, directing and quashing the appointment of the petitioner herein to the post of Assistant Professor reserved for Women-GM and directed to recalculate the marks as hereunder:

"The petitioner is challenging order of appointment dated 28.09.2012 passed by the 3rd respondent, (Annexure- A), appointing the 4th respondent to the post of Assistant Professor, reserved for Women (GM) in the Department of Agricultural Engineering, interalia, sought for appointment to the said post strictly in terms of the scorecard guidelines prescribed by the University of Agricultural Science (Annexure-C).

2. Relevant facts for the adjudication of the case are that, the respondent-University has issued notification dated 06.03.2012, to fill up various posts in different departments including four posts

of Assistant Professor in the Department of Agricultural Engineering as per notification produced at Annexure-B to the writ petition. The respondent-University NC: 2026:KHC:20250 HC-KAR has issued guidelines and procedure for selection to the post of Professor/Teacher, dated 03.12.2007 (Annexure-C) to the writ petition. The petitioner as well as the 4th respondent had appeared for interview and in terms of the scorecard produced at Annexure-D to the writ petition, the petitioner has secured 41.90 marks and the 4th respondent has scored 43.22 marks.

3. It is the contention of the petitioner that petitioner has lost out the job to 4th respondent on account of improper and wrong assessment and recording of score by the interview committee. Feeling aggrieved by the same, the petitioner has approached the respondent-University by way of representation and as the respondents have not considered the case of the petitioner, the present writ petition is filed challenging selection of the 4th respondent to the post of Assistant Professor reserved for Women(GM) in the Department of Agricultural Engineering.

4. I have heard Sri. I.Tharanath Poojary, learned Senior counsel appearing on behalf of Sri Shivaprasad Shanthanagoudar, for the petitioner and Sri M.Srinivasa, learned counsel appearing for the respondent Nos.1 to 3; Sri. C.G.Gopalaswamy, learned Senior counsel appearing on behalf of Sri Bhargav G., for the respondent No.4; Sri M.S. Nagaraja, learned Additional Government Advocate for respondent No.5- Government.

5. Sri I.Tharanath Poojary, learned Senior counsel appearing for the petitioner contended that the selection committee has not followed the guidelines produced at NC: 2026:KHC:20250 HC-KAR Annexure-C to the writ petition and marking of marks is contrary to the same, and the selection committee has deliberately failed to consider the experience of the petitioner as Teacher at College of Agriculture, VC Farm, Mandya, and accordingly, he sought for interference of this Court. In this regard, he referred to the guidelines providing for award of marks, particularly, Sl No.1(e) envisages for additional qualification in the field and Sl No.4 provides for experience in Teaching/Research/Extension and therefore, he contended that, though the petitioner was working with the University of Agricultural Science, Mysore and Mandya, and same was ignored and on the other hand, respondentUniversity has selected the 4th respondent based on the certificate issued by one of the private firm-Namdhari Agro Fresh Private Limited, which is contrary to guidelines.

6. Nextly, I.Tharanath Poojary, learned Senior counsel argued that, the selection process has to be made in accordance with the rules and terms of the recruitment notification and every candidate participated in the selection process has vested right for consideration and therefore, he places reliance on the judgment of the Hon'ble Apex Court in the case of N.T.Devin Katti and others vs. Karnataka Public Service Commission and others reported in (1990) 3 SCC 157 and in the case of Commissioner of Police vs. Raj Kumar reported in (2021) 8 SCC 347. He further contended that the requirement of NET certificate as stated by respondent-University is not required in the present situation, where, ICAR is not conducting any NET for certain disciplines and in this regard, he refers to the corrigendum NC: 2026:KHC:20250 HC-KAR dated 05.02.2010 (Annexure-L). Emphasizing on this aspect, Sri I.Tharanath Poojary, learned Senior counsel contended that the appointment of the 4th respondent is vitiated by legal malice and malafide on the part of the respondentUniversity and therefore, he sought for interference of this Court.

7. Per contra, Sri C. R. Gopalaswamy, learned senior counsel appearing for 4th respondent sought to justify the selection of the 4th respondent and further contended that, the appointment has been made as per the Rules and Guidelines provided at Annexure-C to the writ petition and accordingly, he sought for dismissal of the writ petition. He further contended that the petitioner having participated in the selection process cannot challenge the methodology adopted by the respondent University and therefore, he referred to the judgment of the Hon'ble Apex Court in the case of Tajvir Singh Sodhi and Others vs. The State of Jammu and Kashmir and others in Civil Appeal Nos.2164-2172 of 2023 disposed of on 28.03.2023. He further contended that, there is no statutory violation by the respondent-University and the prayer made in the writ petition is vague and accordingly, he sought for dismissal of the writ petition. Sri C. R. Gopalswamy, learned senior counsel for the respondent no.4 further contended that 4th respondent has been appointed and thereafter, she has been promoted to the higher post and accordingly, no interference is called for at this stage as more hardship would be caused to 4th respondent.

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8. Sri M.S. Nagaraj, learned Additional Government Advocate appearing for the respondent-Government reiterates the submission made by the learned Senior counsel for the respondent No.4.

9. Sri Srinivasas, learned counsel appearing for the respondent-University contended that the procedure adopted by the respondent-University is as per guidelines produced at Annexure-C to the writ petition and the Expert Committee as per Annexure-R3 after look into the merit of the candidates and selected the 4th respondent and same cannot be interfered with, by exercising the jurisdiction under Article 226 of Constitution of India. Accordingly, he sought for dismissal of the writ petition.

10. In reply to the submission made by the learned counsel appearing for the respondents, Sri I. Tharanath Poojary, learned senior counsel appearing for the petitioner invited the attention of the Court to Clause No.11 of Instructions in the notification dated 06.03.2012, and submitted that, the entire selection process for the post notified is as per the score card and therefore, in this regard, as there is violation of statutory obligation by the respondent- University, he contended that, the submission made by the respondents cannot be accepted. He also referred to the judgment of the Hon'ble Apex Court in the case of State of Orissa and Another vs. Mamata Mohanty reported in (2011) 3 SCC 436. He further contended that the respondent- University never denied the allegations made by the petitioner in the Statement of Objections with regard to the NC: 2026:KHC:20250 HC-KAR mode of selection process and therefore, he sought for interference of this Court.

11. In the light of the submission made by the learned counsel appearing for the parties, the respondent-University has issued notification dated 06.03.2012 to recruit various posts in the University of Agricultural Sciences. Insofar as Agricultural Engineering is concerned, there are four posts, out of which, two posts are general merit (One post reserved for Woman), Category IIA-1 (Woman), SC-1(Woman). Petitioner as well as the 4th respondent appeared for interview for the

post of Assistant Professor in the XCDepartment of Agricultural Engineering. Note to qualification reads as under: Note:

"1. In exceptional cases where ASRB (ICAR) is not conducting the NET in certain disciplines, the candidates should pass NET in the disciplines approved by the Academic Council in the related subjects: As per Notification No.AO/RT/Quali. Asst.Prof./Direct Rectt./2008-09 dated: 18-7-2008 and Notification No.AO/RT/Quali. Asst.Prof./Direct Rectt./2008-09 dated 3-11-2008, and as approved by the Board of Management in its 337th II Adjourned Emergent Meeting held on 6-8- 2010 and confirmed in the Minutes dated: of 25-11-2010. Corrigendum No.AO/PS/AC-167/21/Item - 9/Corgndm/2010 dated: 5-

2-2010 available on UAS-B Website:www.uasbangalore.edu.in"

12. Clause-I (4) of the Guidelines (Annexure-C) reads as under:

4. Experience in Maximum marks allotted = 15 Teaching/Research / Extension: i) 0.125 Mark for each month of Experience in the cadre of service in Teaching/ Research/ Instructor / Research Assistant / Extension.

Extension Guide / Technical Note : To be supported by Assistant / Scientific Assistant / authorized document issued by

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NC: 2026:KHC:20250 HC-KAR Farm Manager / temporary the competent authority.

appointments as Research Associate / Extension worker / Full time SRF / Project Scientist / Specialist in an University/College / Government Departments/Research Organizations/Boards/Corporations / ICAR Institutes / Similar Institute like ICMR, CSIR, NCERT, ICRISAT etc./ Krishi Vignana Kendras / Statutory Bodies / International Organizations / Nationalized Banks / Non Governmental Organizations (NGOs) working on Government Projects.

13. Additional qualifications in the field as per Clause-I

(e) of the notification reads as under:

e) Additional qualifications in Maximum marks allotted = 03 the field (i) Post-doctoral experience = 2 mark for each of 6 months

(ii) PG diploma / M.Phil not less than ten months duration +1 mark for each certificate.

(iii) Higher academic training in a recognised academic/scientific/ professional Institution (21 days & above duration) = 0.5 mark for each training

14. On careful examination of the additional qualification, where the candidate possessing, Post Doctoral experience, two marks for each of six months and 0.5 mark for each trainee, for possessing certificate from Higher Academic Training, in a recognized academic/scientific/ professional Institution in relevant fields (21 days and above duration). Clause I (4) stipulates that, 0.125 marks for each month of service in teaching/ research/extension in a cadre

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NC: 2026:KHC:20250 HC-KAR of Instructor/Research Assistant/Extension Guide/Technical Assistant/Scientific Assistant/Farm Manager/temporary appointments as Research Associate/Extension worker/Full time SRF/ Project Scientist/Specialist in an University/College/Government Departments/Research Organizations/Boards/Corporations /ICAR Institutes/Similar Institute like ICMR, CSIR, NCERT, ICRISAT etc./ Krishi Vignana Kendras/Statutory bodies /International Organization/ Nationalized Banks/Non-Governmental Organizations(NGOs) working on Government Projects and a candidate must establish their experience through authorized documents issued by the competent authority. In the present case, as per a corrigendum dated 05.02.2010 (Annexure-L), which stipulates that, adoption of ICAR regulations, regarding NET, as essential qualification for recruitment of Assistant Professor in the University. Modification made in the corrigendum dated 05.02.2010 (Annexure- L) makes it clear that, instead of "Exempted from NET" it has to be read as 'Exempted". Clause 11 under the head of Instructions in the notification dated 06.03.2012 (Annexure-B), provides that the selection process, is as per the score card, notified by the respondent-University. In that view of the matter, careful examination of the writ papers would indicate that the 4th respondent, had annexed the experience as Manager-Stores at Namdhari Agro Fresh Private Ltd., which cannot be considered for the purpose of experience in terms of the guidelines referred to above as same would not satisfy the requirement therein. I have also noticed that, the petitioner was working as full time contract

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NC: 2026:KHC:20250 HC-KAR Teacher at the college of Agricultural, VC Farm, Mandya, and it is particular under University of Agricultural Sciences Bangalore. In that view of the matter, ignoring the relevant documents made by the petitioner and accepting the documents which is otherwise contrary to guidelines produced at Annexure-C, filed by the 4th respondent herein is in violation Article 14 of the Constitution of India. Therefore, I find force in the submission made by the learned Senior counsel appearing for the petitioner that the entire selection process is based on legal malice and requires to be set aside in this writ petition. Though the respondent- University has argued that, the petitioner has not possessed NET certificate, however, same is exempted in terms of corrigendum issued on 05.02.2010 (Annexure- L to the writ petition). The guidelines referred to at Annexure-C, shall be equally applicable to the candidates and therefore, I am of the view that, the respondent-University has not followed the norms governing the essential aspects, such as qualification and experience and the entire process has not been made in terms of the notification

and guidelines produced Annexures- B and C respectively. At this juncture, it is relevant to extract the dictum of the Hon'ble Apex Court in the case of N.T.Devin Katti and others (supra), paragraph 11, which reads as under:

"11. There is yet another aspect of the question. Where advertisement is issued inviting applications for direct recruitment to a category of posts, and the advertisement expressly states that selection shall be made in accordance with the existing Rules or Government Orders, and if it further indicates the extent of reservations in favour of various categories, the selection of candidates in such a case must be

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NC: 2026:KHC:20250 HC-KAR made in accordance with the then existing Rules and Government Orders. Candidates who apply, and undergo written or viva voce test acquire vested right for being considered for selections in accordance with the terms and conditions contained in the advertisement, unless the advertisement itself indicates a contrary intention. Generally, a candidate has right to be considered in accordance with the terms and conditions set out in the advertisement as his right crystallises on the date of publication of advertisement, however he has no absolute right in the matter. If the recruitment Rules are amended retrospectively during the pendency of selection, in that event selection must be held in accordance with the amended Rules. Whether the Rules have retrospective effect or not, primarily depends upon the language of the Rules and its construction to ascertain the legislative intent. The legislative intent is ascertained either by express provision or by necessary implication, if the amended Rules are not retrospective in nature the selection must be regulated in accordance with the Rules and orders which were in force on the date of advertisement. Determination of this question largely depends on the facts of each case having regard to the terms and conditions set out in the advertisement and the relevant Rules and orders. Lest there be any confusion, we would like to make it clear that a candidate on making application for a post pursuant to an advertisement does not acquire any vested right for selection, but if he is eligible and is otherwise qualified in accordance with the relevant Rules and the terms contained in the advertisement, he does acquire a vested right for being considered for selection in accordance with the Rules as they existed on the date of advertisement. He cannot be deprived of that limited right on the amendment of Rules during the pendency of selection unless the amended Rules are retrospective in nature."

15. In the case of Rajkumar (supra), the Hon'ble Apex Court at paragraph 28 to 31 has held as under:

"28. Courts exercising judicial review cannot second guess the suitability of a candidate for any public office or post. Absent evidence of malice or mindlessness (to the materials), or illegality by the public employer, an intense scrutiny on why a

candidate is excluded as

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NC: 2026:KHC:20250 HC-KAR unsuitable renders the courts' decision suspect to the charge of trespass into executive power of determining suitability of an individual for appointment. This was emphasized by this court, in *M.V. Thimmaiah v. Union Public Service Commission* which held as follows: (SCC pp.131, 135-36 paras 21& 30) "21. Now, comes the question with regard to the selection of the candidates. Normally, the recommendations of the Selection Committee cannot be challenged except on the ground of mala fides or serious violation of the statutory rules. The courts cannot sit as an Appellate Authority to examine the recommendations of the Selection Committee like the court of appeal. This discretion has been given to the Selection Committee only and courts rarely sit as a court of appeal to examine the selection of the candidates nor is the business of the court to examine each candidate and record its opinion...

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30. We fail to understand how the Tribunal can sit as an Appellate Authority to call for the personal records and constitute Selection Committee to undertake this exercise. This power is not given to the Tribunal and it should be clearly understood that the assessment of the Selection Committee is not subject to appeal either before the Tribunal or by the courts. One has to give credit to the Selection Committee for making their assessment and it is not subject to appeal. Taking the overall view of ACRs of the candidates, one may be held to be very good and another may be held to be good. If this type of interference is permitted then it would virtually amount that the Tribunals and the High Courts have started sitting as Selection Committee or act as an Appellate Authority over the selection."

29. In *Dalpat Abasaheb Solunke v Dr. B.S. Mahajan* this court held that: (SCC pp.309-10, para 12)

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NC: 2026:KHC:20250 HC-KAR "12. ... it is not the function of the court to hear appeals over the decisions of the Selection Committees and to scrutinise the relative merits of the candidates. Whether a candidate is fit for a particular post or not has to be decided by the duly constituted Selection Committee which has the expertise on the subject. The court has no such expertise. ... in the present case the University had constituted the Committee in due compliance with the relevant statutes. The Committee consisted of experts and it selected the candidates after going through all the relevant material before it. In sitting in appeal over the selection so made and in setting it aside on the ground of the so-called comparative merits of the candidates as assessed by the court, the High Court went wrong and exceeded its jurisdiction."

30. Again, in *Union Public Service Commission v. M. Sathiya Priya*, it was iterated that: (SCC p.8012, para 17 "17. ... The question as to how the categories are assessed in light of the relevant records and as to what norms apply in making the assessment, is exclusively to be determined by the Selection Committee. Since the jurisdiction to make selection as per law is vested in the Selection Committee and as the Selection Committee members have got expertise in the matter, it is not open for the courts generally to interfere in such matters except in cases where the process of assessment is vitiated either on the ground of bias, mala fides or arbitrariness. It is not the function of the court to hear the matters before it treating them as appeals over the decisions of the Selection Committee and to scrutinise the relative merit of the candidates. The question as to whether a candidate is fit for a particular post or not has to be decided by the duly constituted expert body i.e. the Selection Committee."

31. Public service - like any other, pre-supposes that the state employer has an element of latitude or choice on who should enter its service. Norms, based on principles, govern essential aspects

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NC: 2026:KHC:20250 HC-KAR such as qualification, experience, age, number of attempts permitted to a candidate, etc. These, broadly constitute eligibility conditions required of each candidate or applicant aspiring to enter public service. Judicial review, under the Constitution, is permissible to ensure that those norms are fair and reasonable, and applied fairly, in a non-discriminatory manner. However, suitability is entirely different; the autonomy or choice of the public employer, is greatest, as long as the process of decision making is neither illegal, unfair, or lacking in bona fides."

16. In the case of *Prakash Chand Meena and others vs. State of Rajasthan and others* reported in (2015) 8 SCC 484 paragraph 8 reads as under:

"8. Having heard the parties, we have also perused the written submissions filed on behalf of some of them and have perused the judgment of the learned Single Judge [*Prakash Chand Meena v. State of Rajasthan*, 2012 SCC OnLine Raj 1898] and the impugned judgment [*Dinesh Kumar Panwar v. Suresh Chand*, Civil Special Appeal (Writ) No. 1181 of 2012, decided on 1-7-2013 (Raj), 2013 SCC OnLine Raj 3770] of the Division Bench. In our considered view, the issue noticed at the outset must be decided on the basis of settled law noticed by the learned Single Bench that recruitment process must be completed as per terms and conditions in the advertisement and as per Rules existing when the recruitment process began. In the present case, the Division Bench has gone to great lengths in examining the issue whether BPED and DPED qualifications are equivalent or superior to CPED qualification but such exercise cannot help the cause of the respondents who had the option either to cancel the recruitment process if there existed good reasons for the same or to complete it as per terms of advertisement and as per Rules. They chose to continue with the recruitment process and hence they cannot be permitted to depart from

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NC: 2026:KHC:20250 HC-KAR the qualification laid down in the advertisement as well as in the Rules which were suitably amended only later in 2011. In such a situation, factual justifications cannot change the legal position that the respondents acted against law and against the terms of advertisement in treating such applicants successful for appointment to the post of PTI Gr. III who held other qualifications but not the qualification of CPED. Such candidates had not even submitted separate OMR application form for appointment to the post of PTI Gr. III which was essential as per the terms of advertisement."

17. In the case of Parvaize Ahammed Parry vs. State of Jammu and Kashmir and others, (2015) 17 SCC 709 Hon'ble Apex Court at paragraphs 13 and 16 has held as follows:

"13. As would be clear from the undisputed facts mentioned above, the minimum qualification prescribed for applying to the post of Jammu and Kashmir Forest Service Range Officers Grade I was "BSc (Forestry) or equivalent from any university recognised by ICAR". It is not disputed that the appellant had to his credit a qualification of BSc with Forestry as one of the major subjects and Masters in Forestry i.e. MSc (Forestry), on the date when he applied for the post in question, which satisfied the eligibility criteria so far as the qualification was concerned.

14. We do not agree with the reasoning of the High Court that in order to be an eligible candidate, the appellant should have done BSc in Forestry and since he had not done so, he was not considered as an eligible candidate. This reasoning, in our view, does not stand to any logic and is, therefore, not acceptable insofar as the facts of this case are concerned.

15. In our considered view, firstly, if there was any ambiguity or vagueness noticed in prescribing the qualification in the advertisement,

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NC: 2026:KHC:20250 HC-KAR then it should have been clarified by the authority concerned in the advertisement itself. Secondly, if it was not clarified, then benefit should have been given to the candidate rather than to the respondents. Thirdly, even assuming that there was no ambiguity or/and any vagueness yet we find that the appellant was admittedly having BSc degree with Forestry as one of the major subjects in his graduation and further he was also having Master's degree in Forestry i.e. MSc (Forestry). In the light of these facts, we are of the view that the appellant was possessed of the prescribed qualification to apply for the post in question and his application could not have been rejected treating him to be an ineligible candidate for not possessing prescribed qualification.

16. In our view, if a candidate has done BSc in Forestry as one of the major subjects and has also done Masters in Forestry i.e. MSc (Forestry) then in the absence of any clarification on such issue, the candidate possessing such higher qualification has to be held to possess the required qualification to apply for the post. In fact, acquiring higher qualification in the prescribed subject i.e. Forestry was sufficient to hold that the appellant had possessed the prescribed qualification. It was coupled with the fact that Forestry was one of the appellant's major subjects in graduation, due to which he was able to do his Masters in Forestry."

18. Following the declaration of law made by the Hon'ble Apex Court referred to above, I am of the view that the awarding of marks by the respondent-University at Annexure-D to the writ petition is untenable and do not pass the list of objectivity recruitment for the post of Assistant Professor under notification dated 06.03.2012, appointing the 4th respondent to the post of Assistant Professor is contrary to the notification and guidelines referred to at

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NC: 2026:KHC:20250 HC-KAR Annexures-D and E respectively. Therefore, I am of the view that the appointment of the 4th respondent as per order dated 28.09.2012 (Annexure-A), requires to be set aside and the matter is remitted to the respondent-University to reconsider the case of the candidates who had appeared in the interview, in terms of the notification dated 06.03.2012, afresh and take decision in the matter. This Court, by order dated 27.02.2013, passed an interim order that all further proceedings of the respondent will be subject to the further orders and disposal of the writ petition. In that view of the matter, since, the entire selection process and awarding marks insofar as the appointment of the Assistant Professor under notification dated 06.03.2012, appointing the 4th respondent is contrary to law and in the light of the judgments of the Hon'ble Apex Court referred to above, it is also to be noted that, the judgments referred to by the contesting respondents in Tajvir Singh Sodhi (supra) is not applicable to the facts on record as the petitioner herein has proved that selection process and methodology of the recruitment is violation of statutory rules, moreover, it is relevant to extract paragraph 12.1 (page 50) of the said judgment.

"12.1 Thus, the inexorable conclusion that can be drawn is that it is not within the domain of the Courts, exercising the power of judicial review, to enter into the merits of a selection process, a task which is the prerogative of and is within the expert domain of a selection Committee, subject of course to a caveat that if there are proven allegations of malfeasance or violations of statutory rules, only in such cases of inherent arbitrariness, can the Courts intervene.

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NC: 2026:KHC:20250 HC-KAR Thus, Courts while exercising the power of judicial review cannot step into the shoes of the selection Committee or assume an appellate role to examine whether the marks awarded by the Selection Committee in the viva-voce are excessive and not corresponding to their performance in such test. The

assessment and evaluation of the performance in such test. The assessment and evaluation of the performance of candidates appearing before the Selection Committee/ Interview Board should be best left to the members of the committee. IN light of the position that a Court cannot sit in appeal against the decision taken pursuant to a reasonably sound selection process, the following grounds raised by the writ petitioners, where are based on the attack of subjective criteria employed by the selection board/ interview panel in assessing the suitability of candidates, namely, (i) that the candidates who had done their post- graduation had been awarded 10 marks and in the viva-voce, such PG candidates had been graded either 18 marks or 20 marks out of 20. (ii) that although the writ petitioners has performed exceptionally well in the interview, the authorities had acted in an arbitrary manner while carrying out the selection process, would not hold any water.

19. Following the law declared by the Hon'ble Apex Court in the above case, and as this Court has already arrived at a conclusion that, the writ petitioner has proved that, the entire selection process has been vitiated as the eligibility criteria enshrined in the notification dated 06.03.2012, (Annexure-B) and the guidelines (Annexure-C) has not been followed, I find force in the submission made by the learned Senior Counsel appearing for the petitioner as the petitioner has made out case for interference in this petition. It is useful to extract paragraphs 59 to 63 in the case

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NC: 2026:KHC:20250 HC-KAR of Mamata Mohanty (supra), wherein Hon'ble Apex Court has held as under:

"59. The rule of law inhibits arbitrary action and also makes it liable to be invalidated. Every action of the State or its instrumentalities should not only be fair, legitimate and above board but should be without any affection or aversion. It should neither be suggestive of discrimination nor even give an impression of bias, favouritism and nepotism. Procedural fairness is an implied mandatory requirement to protect against arbitrary action where statute confers wide power coupled with wide discretion on an authority. If the procedure adopted by an authority offends the fundamental fairness or established ethos or shocks the conscience, the order stands vitiated. The decision-making process remains bad. [Vide Haji T.M. Hassan Rawther v. Kerala Financial Corpn , Rash Lal Yadav (Dr.) v. State of Bihar and Tata Cellular v. Union of India .

60. In State of A.P. v. Nalla Raja Reddy [AIR 1967 SC 1458] a Constitution Bench of this Court observed as under : (AIR p. 1468, para 23) "23. ... Official arbitrariness is more subversive of the doctrine of equality than statutory discrimination. In respect of a statutory discrimination one knows where he stands, but the wand of official arbitrariness can be waved in all directions indiscriminately."

61. Similarly, in S.G. Jaisinghani v. Union of India [AIR 1967 SC 1427] , a Constitution Bench of this Court observed as under : (AIR p. 1434, para 14) "14. ... absence of arbitrary power is the first essential of the rule of law upon which our whole constitutional system is based. ... the rule of law from this point of view means that decisions should be made by the application of known principles and rules and, in general, such decisions should be predictable and the citizen

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NC: 2026:KHC:20250 HC-KAR should know where he is. If a decision is taken without any principle or without any rule it is unpredictable and such a decision is the antithesis of a decision taken in accordance with the rule of law."

(See also Commr. of Police v. Gordhandas Bhanji [1951 SCC 1088 : AIR 1952 SC 16] .)

62. It is a matter of common experience that a large number of orders/letters/circulars, issued by the State/statutory authorities, are filed in court for placing reliance and acting upon it. However, some of them are definitely found to be not in conformity with law. There may be certain such orders/circulars which are violative of the mandatory provisions of the Constitution of India. While dealing with such a situation, this Court in Ram Ganesh Tripathi v. State of U.P. came across with an illegal order passed by the statutory authority violating the provisions of Articles 14 and 16 of the Constitution. This Court simply brushed aside the same without placing any reliance on it observing as under : (SCC p. 625, para 9) "9. ... The said order was not challenged in the writ petition as it had not come to the notice of the appellants. It has been filed in this Court along with the counteraffidavit.... This order [is also deserved] to be quashed as it is not consistent with the statutory rules. It appears to have been passed by the Government to oblige the respondents...."

(emphasis added)

63. The whole exercise done by the State authorities suffers from the vice of arbitrariness and thus is violative of Article 14 of the Constitution. Therefore, it cannot be given effect to."

Taking into consideration the observations made above that, the respondent-University has appointed the 4th respondent dehorse to the notification and the guidelines

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NC: 2026:KHC:20250 HC-KAR (Annexure-B and C respectively) and the selection of the 4th respondent is in contravention of the same, hence, I pass the following:

ORDER

i) Writ petition is allowed;

ii) Order dated 28.09.2012 (Annexure-A) appointing the 4th respondent to the post of Assistant professor reserved for women(GM) in the Department of Agricultural Engineering is quashed.

iii) The respondent-University is directed to recalculate the marks produced at Annexure-D to the writ petition in terms of the notification dated 06.03.2012 (Annexure-B) and the guidelines produced at AnnexureC to the writ petition within an outer limit of three months from the date of receipt of certified copy of this order and to announce the results accordingly."

4. Aggrieved by the same, the petitioner herein filed an appeal in W.A.No.508/2023, which came to be dismissed by the Hon'ble Division Bench of this Court vide final order dated 27.07.2023. So also, the appeal before the Apex Court filed by the petitioner in SLP No.16962/2023 came to be dismissed by the Apex Court. Subsequently, respondent Nos.2 and 3-University in its 406th meeting of the Board of Management took a decision to consider the case of the petitioner for appointment on humanitarian

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NC: 2026:KHC:20250 HC-KAR grounds either by creating a supernumerary post or against a clear sanctioned post by placing the matter before the Board of Management to take a decision on obtaining the approval of the Government. In pursuance of the said decision, in the 406th Meeting of the Board, legal opinion was sought for by the respondent Nos.2 and 3-University and in the 406th meeting of the Board of Management dated 23.04.2025, respondent-University took a decision to reappoint the petitioner as an Assistant Professor considering her service of 11.5 years in the light of judgments of the Apex Court, this court and other High Courts. In pursuance of the aforesaid decision taken in the 406th Meeting of the Board of Management of the University of Agricultural Sciences of the respondent-University, the respondent-University addressed a communication dated 21.05.2025 (Annexure-C) seeking advice of the State Government to reappoint the petitioner as an Assistant Professor of Agricultural Engineering at the respondent-University.

Since the State Government did not take any steps in this regard, the petitioner approached this court by way of the present petition, which was filed on 30.08.2025.

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NC: 2026:KHC:20250 HC-KAR

5. Subsequent to filing of the present petition, in their statement of objections, the respondents brought to the notice of this Court that the respondent-University had rejected the request of the petitioner for reappointment vide Communication dated 30.10.2025 and as such, the petitioner got the petition amended and challenged the said communication at Annexure-J dated 30.10.2025 by suitably amending the petition. In this context it is pertinent to note that the aforesaid impugned

communication at Annexure-J dated 30.10.2025 is based upon a letter/communication issued by the State Government dated 03.09.2025, which is produced as Annexure-R2 along with the Statement of Objections filed by the respondent-University.

6. Learned Senior Counsel for the petitioner would reiterate the various contentions urged in the petition and would invite my attention to the aforesaid letter at Annexure-R2 produced by the respondent-University along with the Statement of Objections, in order to point out that the said communication, which formed the basis for the University to reject the claim of the petitioner was non-speaking, cryptic, laconic and unreasoned and except stating that the petitioner had been unsuccessful in the

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NC: 2026:KHC:20250 HC-KAR previous rounds of litigation, the State Government had not taken into account the judgments of the Apex Court, this Court and other High Courts, despite the University specifically stating that the petitioner was entitled to be reappointed in view of the judgments relied upon by the petitioner and as such, though the aforesaid Communication at Annexure-R2, produced along with the Statement of Objections by the respondent-University at Annexure-J dated 30.10.2025 issued by the University is based upon the aforesaid communication at Annexure R2 dated 03.09.2025, it is a fit case to set aside both Annexure-R2 and J and remit the matter back to the respondents for reconsideration of the matter afresh bearing in mind the following judgments:

a) Dr. Sunitha T. Vs. The State of Karnataka and others - Review Application No.112/2024 dated 05.06.2024.

b) The University of Agricultural Sciences Vs. Sri. Dr. Digambarappa - W.A.No.100263/2022 C/w. W.A.No.100264/2022 - dated 24.06.2022 (Dharwad Bench).

c) The Registrar and others Vs. Sri. Chikkanna and others

- W.A.No.705/2024 & Con. Matters - dated 16.12.2025 (Division Bench).

d) State of Uttar Pradesh Vs. Preetam Singh and others - (2014) 15 SCC 774.

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7. Per contra, Learned counsel for the respondent-

University would support the claim of the petitioner and reiterated that in its Communication at Annexure-J dated 31.10.2025, the respondent-University had sought for the advice of the State

Government for the purpose of reappointment of the petitioner and it is only because the State Government refused and issued the Communication at Annexure-R2 dated 03.09.2025, that the respondent-University was constrained to issue the impugned endorsement at Annexure-J and as such, the present petition may be disposed of accordingly.

8. Per contra, learned AGA for the respondent-State submits that as per the university regulations, approval of the State Government is required and as per the Universities of Agricultural Sciences Act, 2009 (for short "the said Act of 2009") and as such, the respondent-State was clearly justified in refusing to accede to the request made by the University by issuing Annexure-R2 dated 03.09.2025, which does not warrant interference by this Court in the present petition, especially since the grants were given by the State Government.

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NC: 2026:KHC:20250 HC-KAR

9. By way of reply, learned Senior Counsel for the petitioner would invite my attention to Section 7(10) of the said Act of 2009, in order to point out that the University shall have the power and function to create teaching, research and extension education posts and also appoint persons to such post and as such, the said contention urged by the respondent-State cannot be accepted, as held by the Division Bench of this Court in Chikanna's case (supra).

10. I have given my anxious consideration to the rival submissions and perused the material on record.

11. Section 7(10) of the said Act of 2009, reads as under:

"7. Powers and functions of the University. - The University shall have the following powers and functions namely:-

Xxxx Xxxx Xxxxx (10) to create teaching, research and extension education posts and to appoint persons to such posts."

12. In the case of the Secretary to Govt. Vs. Dr. Parappa Shankarappa and others -W.A.No.968/1998 & W.A.No.1083-86

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NC: 2026:KHC:20250 HC-KAR and W.A.No.1108-29/99 dated 30.09.1999 (Annexure-G) the Hon'ble Division Bench of this Court held as under:

"This appeal is filed by the State of Karnataka questioning the order passed by the learned Single Judge in so far as it relates to the observations and directions made in para 10 of the order dated 18.09.1998 in W.P.No.23733- 759/98.

2. The facts of the case are as under:-

Respondents 1 to 10 are professors working in Karnataka University, Dharwad and respondents 11 to 13 were working in Karnataka University, Dharwad, now retired. Respondents 14 to 20 are working in Karnataka University and Respondent No.21 had worked as a Reader in the said University. Respondents 22 and 23 are working as Sports Coach and respondents 24 to 27 have retired as sports coach in the Karnataka University, Dharwad. These respondents filed writ petition Nos. 23733-759/98 seeking for a writ in the nature of mandamus directing the respondent appellant to fix the pay in the scale of Rs.3700-5700 with a further direction to pay arrears with interest, their foundation of claim an order dated 19.07.1994 being Annexure-L to the petitions. The said Annexure-L refers to time bound promotions to the teachers of the Post-Graduate Department, Karnataka University. Four teachers of the University namely Sri. S.K. Daniel, Sri F.V. Yavagal, Dr. S.G. Kadaramandalegi and Dr. S.R. Narappanavar had filed writ petition in W.P.8505/86 before this Court and their petitions

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NC: 2026:KHC:20250 HC-KAR were disposed of by this Court on 21.04.1994. The relevant portion of the said order reads as under:-

"From the facts narrated and arguments advanced it is clear that authorities committed a mistake in discriminating the nature of work the Demonstrators/Tutors carrying on the one hand and Research Assistants, Senior Research Assistants, Micro Analysts, etc. on the other. Now it is established that Research Assistants and persons holding other allied posts were also attached to teaching and in fact were discharging the duties of a tutor. Services rendered by Senior Research Assistants while compared to Demonstrators were quite superior. So also qualification, when both persons were placed similarly it was Incorrect to ignore the case of the petitioners and accept only the case of Demonstrators and Tutors by giving particular assent amended statute. When the University made a suggestion to treat both on par and extend the facilities Chancellor should have considered the said suggestion instead of withholding it. The position of Research Assistants and instructors working in UAS and Bangalore University were almost identical with that of the petitioners. When the case of these persons was accepted and given the benefit of Time Bound Promotion taking into consideration their long standing experience, nature of work turned, qualification possessed, the same benefit should have been given to the similarly placed petitioners in Karnataka University as their case is in no way different with that of those working in UAS and Bangalore University. The scale of pay given to the Research Demonstrators, Tutors, Research Assistants were almost equal and identical. Nature of work was again identical. As such Time Bound Promotion should have been given to the petitioners also. No reason why Annexure-F by the University was not assented in toto by the Chancellor partially. When all posts were upgraded as

shown at annexure-A to D case of the petitioners also should have been considered. Correct understanding of arguments advanced by both sides will lead to an inference that the approach of the respondents was not correct. On the other hand it was arbitrary and discriminatory in nature. contentions raised by the petitioners if understood properly they deserved to be accepted as correct.

"Hence the W.P. is allowed. Orders at Annexure-G & J are quashed and respondents are directed consider

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NC: 2026:KHC:20250 HC-KAR the case of the petitioners for time bound promotion from the date on which they were entitled to with all other consequential benefits. Compliance in 3 months."

To the said petition, the State Government and Chancellor were parties which requires to be noted at this stage. An appeal was filed against the said order in W.A.2349/95, but at the instance of the University and the Government, the said appeal came to be dismissed as having become infructuous in view of the later developments pleaded by the learned Government Advocate. The University granted a time bound promotion to 43 teachers including the petitioners herein and also the other four petitioners in W.P.8505/86. The Senate of the University passed appropriate statutes for giving consequential benefits of time bound promotions to all these 43 persons and sent the same to the Government for submission to the Chancellor for his assent under its letter dated 21.3.1998. During the relevant time, the statutes sent by the University were still pending consideration. in this background of facts, the respondents-petitioners filed these petitions providing seeking for a mandamus for providing consequential retrospective benefits in terms of Annexure-L dated 19.7.1994. Notices were issued to the respondents and during the pendency of the Petitions, the Government issued a letter dated 15.4.1998 and the said letter contained direction to the University in the matter of implementation of the statutes. The said letter was placed before the learned consideration Single Judge. Pending consideration of the statutes with the Government, the State Government issued

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NC: 2026:KHC:20250 HC-KAR the letter dated 15.4.1998 which was placed before the learned Judge as could be seen from the pleadings.

3. The learned Single Judge had framed two questions of law as arising from the pleadings of the parties reading as under:

"(1) Whether it is competent on the part of the State Government to give directions to the University for according certain benefits arising out of employment to any teaching or non-teaching staff of the University contrary to the statutes or in the absence of any relevant 'statutes in that regard? and, (2) Whether the State

Government can retain the draft statutes sent to it for submission to the Chancellor beyond three months of the date on which it was received from the University?"

4. The learned Single Judge, after noticing the various provisions of the Karnataka Universities Act, in particular Sections 35 and 36, came to a conclusion that under Section 36(4) it is mandatory on the part of the State Government to submit the statute sent by the Senate for consideration within three months and the Chancellor has to take a final decision with regard to the grant of approval to the statute within one month from the date of receipt by the State Government. The learned single noticed that the Government has not submitted the statute to the Chancellor ever after lapse of six months and the Government is duty bound to submit the statute sent by the University to the Chancellor for his assent within the time limit fixed under the Act. In the course of the arguments, the learned Advocate General appearing for the State submitted that the lapse in the present case may be ignored as a one time measure with an assurance that there will be strict compliance with the

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NC: 2026:KHC:20250 HC-KAR legislative mandate with a further assurance that within one month from today the Government will submit the statutes in question to the Chancellor for due considerations. However, the learned Single Judge, while considering the powers of the State Government, to give directions to the University, in para 10 of the order has ruled as under:-

"So far as the second question regarding powers of the State Government to give directions to the Universities are concerned, despite turning of each page of the Universities Act both by the learned Advocate General as also the Counsel appearing for the petitioners and the University, no provisions could be located under which the State Government can give a direction to the University with regard to the discharge of its functions or pertaining to the matters which are to be essentially covered by the statutes which are framed under Section 35 read with Section 36 of the Act. In that view of the matter it is expected rather directed that the State Government should henceforth forbear from giving any direction to any University established under the Universities Act which are required to be governed by the specific statutory provisions or the delegated legislations like the Statutes. Any violation in this regard on the part of the Government will be dealt with as committing contempt of this Court. I find making of such observation necessary because in various cases I have found that the Government, of late, have been prevailing on which Universities which are creatures of the Act by treating those as Departments Government. This impression needs to be dispelled."

It appears now the petitioners have been provided retrospective benefits by the University. As mentioned earlier, the State Government is aggrieved only with regard to the finding of the learned Judge that the State Government cannot, issue directions to the University as observed in paragraph 10. It is this finding that is challenged before us.

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NC: 2026:KHC:20250 HC-KAR

5. We have heard the learned Advocate General at length and perused the material on record and the order of the learned Single Judge. The learned Advocate General assailed the finding of the learned Single Judge stating that the impugned order with regard to power of the Government in the matter of issue of directions requires reconsideration. Alternatively he submitted that the contents of the letter would show that it is not a direction at all and in view of the anxiety on the part of the Government in implementing the order, such a letter was issued to the University. Elaborating his submissions, the learned Advocate General referred to various provisions of the Act and in particular to Sections 4,5,8,9,41 and 44 and contended the Government has a say in the matter, since the Government is financing the University and therefore no fault can be found with the Government in issuing directions. He stated that the Government has the necessary powers flowing under the Act in the light of these provisions. He also relied on the judgments reported in AIR 1974 S.C. 1232, AIR 1988 S.C.481, 1982 (1) SCR 259, 1984 (1) SCC 302. In concluding the learned Advocate General submitted that in view of the pronouncements of the Supreme Court, it cannot be said that the Government has no power at all to issue of directions even with regard to service matters. The learned Counsel for the University did not make any submission and the learned Counsel for the respondents stated that already consequential benefits have been granted to his clients in the matter.

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6. After hearing the learned Counsel on either side and after giving our anxious consideration to the arguments advanced by the learned Advocate General, we have to see as to whether the State Government, in the light of Sections 35 and 36 of the Act, has the necessary power to give directions as held by the learned Single Judge in para 10 of the impugned order.

7. At the outset it should be stated that the Karnataka State Universities Act, 1976 ('the Act' for short) is an Act for providing a uniform law relating to the Universities in the State of Karnataka. Large number of ministerial staff do work in the University and their service conditions are to be regulated for proper functioning and for maintaining proper education in Universities in terms of the statutes. Chapter V deals with statutes providing for all or any of the following matters namely:-

(a) the constitution, functions and powers of the Authorities of the University and such other bodies as may be declared to be the Authorities of the University from time to time;

(b) the election and continuance in office of the members of the said Authorities or bodies, including the continuance in office of the first members and the filling of vacancies of members and all other matters relating to those Authorities or bodies of

which it may be necessary or desirable to provide;

(c) the conferment of Honorary Degrees;

(d) holding of convocations for conferring degrees and diplomas;

(e) the withdrawal of degrees, diplomas, certificates and other academic distinctions;

(f) the establishment, maintenance and abolition of faculties, departments, hostels, colleges and institutions:

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NC: 2026:KHC:20250 HC-KAR

(g) the conditions under which colleges may be affiliated and such affiliation may be withdrawn:

(h) the institution of fellowships, scholarships, studentships, exhibitions, medals and prizes:

(i) the institution, suspension or abolition of Professorships, Readerships, , Lecturerships, ministerial and non-teaching posts:

(ia) institution of temporary posts of Lecturers, part-time posts of Lecturers, Assistant Professors, Readers and Professors or temporary posts of any class or classes of non-teaching staff, for any specified period not exceeding one year;

(j) the procedure to be followed at meetings of such other Authorities or bodies including the quorum for the transaction of the business by them;

(k) the classification of teachers of the University and of the affiliated colleges;

(l) the method of recruitment of teachers;

(m) the conditions of service including emoluments of the employees of the University;

(n) the acceptance and management of bequests, donations and endowments;

(o) the registration of graduates and maintenance of the register of registered graduates;

(p) fees to be charged for the courses of study in the University and in the affiliated colleges and for admissions to the examinations, degrees and diplomas of the University;

(q) fees to be charged for the services rendered by the University; and

(r) all other matters which by this Act are to be the Statutes.", We are concerned only with Section 35(m) pertaining to the conditions of service of the employees. Section 36 deals with the Statutes their making and the statutes passed by the Senate. The State Government shall transmit the statutes passed by the Senate, along with its comments to

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NC: 2026:KHC:20250 HC-KAR the Chancellor within three months of the date on which it received the statutes from the University. Sub-section (5) of Section 36 of the Act makes it clear that no statute passed by the Senate shall have validity until assented to by the Chancellor. A careful reading of Sections 35 and 36 makes it clear that a statute has to be required to be framed providing for conditions of service including emoluments of the employees of the University. A reading of Section 36 would indicate that such a statute is to be sent to the Chancellor by the State Government with its opinion within three months of the date on which it was received and the Chancellor, within one month of the date of receipt of the statutes from the State Government give or withhold his assent thereto or refer it to the Senate for further consideration. In the light of these two provisions, it is very clear that the State Government cannot said to have any authority or power to issue directions to the University in the matter of service conditions of its employees. It is only the statute under Section 35 (m) that can dictate the service conditions of the employees of the University. All that the State Government has to do is to offer its opinion under Section 36 and send it to the Chancellor for his assent. The State Government's power is very limited as could be seen from sub-Section (4) of Section 36 of the Act.

8. The learned Advocate General, as mentioned earlier, referred to the various provisions to contend that the Government has the necessary power to have necessary control. Chapter II of the Act deals with the establishment and incorporation of Universities. The State Government, if

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NC: 2026:KHC:20250 HC-KAR so desire, may seek for inspection under Section 8 of the Act. Chapter III deals with Officers of the University. Similarly, Chapter IV deals with Authorities of University such as Senate, Syndicate and Academic Council, their powers and functions etc. No other provision except Sections 35 and 36 of the Act deal with the service conditions including emoluments of the employees of the University as held by the learned Single Judge. Therefore we are of the view that the learned Single Judge cannot said to have committed any error In holding that the Government cannot issue directions in the absence of any other power under the Act. Moreover , the service conditions of the employees of the University is governed by a statute in

terms of Section 35(m). Such statutes have to be sent to the Chancellor for approval through the State Government. Conditions of service of University employees are covered under Section 35(m) of the Act. Therefore, we are of the view that the State Government cannot issue any directions in a respect of "covered matter" under the Act and any further directions in respect of covered matter would render such covered matter ineffective and inoperative if power to issue directions is made available to the State Government. That is not the object of the Act. The various provisions referred to by the learned Counsel do not in any way water down the impact of Section 35(m) r/w. Section 36. The apprehension of the learned Advocate General with regard to the "finance" is taken care of under the Section 36(4) since the Government can offer its opinion to the Chancellor at the time of approval. The power to offer opinion under Section 36 cannot be

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NC: 2026:KHC:20250 HC-KAR equated to "Directory" power to Government. Approval by itself does not empower the Government to issue a direction as rightly held by the learned Single Judge. Though the learned Single Judge ruled in paragraph 10 that no provision could be located under which the State Government can give a direction to the University with regard to the discharge of its functions or pertaining to the matters which are to be essentially governed by the statutes which are framed under Section 35 read with Section 36 of the Act, it has to be read as meaning that on the facts of this case, in view of the issue being covered under Section 35(m) of the Act, the Government cannot further issue directions styling its implementation process. If the power of direction is conceded, then the University would be rendered as any other Department of the Government without powers under, Section 35 of the Act. The University an autonomous body constituted under a statute cannot be converted into a wing of the Government amenable to any directions in respect of the matter covered under Section 35m of the Act. Further, accepting the directive power of the State Government in respect of a covered matter would result in surrendering the legitimate authority under the Act to the State Government. The legislature has entrusted the power of regulating the service conditions of its employees, to the Chancellor of the University through Government. The executive power cannot be exercised in respect of a matter covered by law. In the case on hand, a competent legislature has conferred the power to the University under Section 35(m) of the Act. The State, in exercise of its executive power, cannot encroach

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NC: 2026:KHC:20250 HC-KAR upon that power not vested with it under the statute by its executive act. Thus, there is no legislative sanction to issue directions to the University, but there is an impleading limitation of its executive power in the matter of directions.

9. The learned Advocate General has cited various judgments as referred to above. The first Judgment AIR 1974 S.C.1232 (NARAIN DAS INDURKHYA V. THE STATE OF MADHYA PRADESH & ORS.) deals with power State Government to prescribe of text books for schools. AIR 1988 S.C. 481 (AARTI GUPTA & ORS. V. STATE OF PUNJAB & ORS.) is again judgment of the Supreme Court in the matter of admission to medical and dental colleges. 1982(1) SCR 759 (STATE OF M.P. & ANR. V. KUMARI NIVEDITA JAIN & ORS.) is with regard to rules for admission in Medical,

Dental and Ayurvedic colleges in Madhya Pradesh. Similarly, judgment in 1984(1) SCC 302 (KRISHNA PRIYA GANGULY ETC. V. UNIVERSITY OF LUCKNOW & ORS. ETC.) is a case dealing with admissions vis-a-vis State Government orders laying down the criteria for admission. These are not cases governing service conditions of University employees as in the present case. Therefore those judgments are not applicable to the facts of the present case.

10. On the other hand, the judgment of the case Supreme Court in ALL KERALA PRIVATE COLLEGE TEACHERS ASSOCIATION V. THE NAIR SERVICE SOCIETY & ORS. (1994(4) SLR 464) is a case dealing with teachers of the University and also the power of the State Government. In that case, the State, purporting to exercise

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NC: 2026:KHC:20250 HC-KAR powers under the Act, issued certain orders under which there was intra University transfer of teachers of various colleges. The same was questioned in Kerala High Court. The learned Single Judge dismissed the petition. A Division Bench allowed the appeal and thereby struck down the statutes submitted for the second time. The matter was taken to Supreme Court in the said judgment. Since there were different Acts for different The Universities, the Supreme after Court referring to the different University Acts ruled that the State Government has a very limited power to issue the first statute under Section 83 of the State Government and the State Government having issued a first statute cannot issue second statute in the absence of statute. It allowed and appeal and quashed the statute as held by the Division Bench of the Kerala High Court. The Supreme Court has referred to Dr.S. Radhakrishnan's University Education Commission's Report, 1950 reading as under:-

"...We must resist in the Interest of our democracy, the trend towards the Governmental domination of the educational process...Higher to be confused with State control over academic policy and practices. Our Universities should be released from the control of politics...."

The Supreme Court has referred to the passage of Dr.S.Radhakrishnan's Report and has further noticed as under:-

"The avowed object with which the two acts and the Gandhi Act have been enacted by the Kerala Legislature, is to leave the pursuit of the higher education under the control and management of various academic bodies of the Universities. Even the framing of

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NC: 2026:KHC:20250 HC-KAR the statutes and ordinances which have the force of law

- are left to the Senate and the Syndicate of the respective Universities."

The Supreme Court again at para 8 has noticed as under:-

"We have given our thoughtful consideration to the rival contentions raised by the parties. We are inclined to agree with the contentions raised by the learned Counsel for the respondent 1. The universities were incorporated and brought into existence on the date the Two Acts were enforced, but the Senate and other bodies of universities were yet to be constituted. The provisions of the Two Acts are not exhaustive. The fields which are left to be covered by the statutes have been enumerated under Section 34 of the Two Acts. The universities could not started functioning unless there were statutes existence immediately after the enforcement of the Two Acts providing for the constitution of the Senate/other bodies of the universities and other regulatory provisions necessary for the functioning of the universities. To meet this eventuality, the legislature has given "one time' power to the State Government to frame the "First Statute" under Section 83 of the Two Acts. When the is constituted and becomes functional then it is the only authority under the Two Acts to frame the statutes. We fail to understand how the State Government can frame the statutes when the Senate is functioning. There cannot be two parallel authorities to make subordinate legislation on the same subject matter. In view of the scheme of the two Acts, it is not possible to contend that the Senate has no power to make statutes on a subject for the first time. We do not agree with the learned counsel for the appellant that the State Government has the power to keep on making "First Statutes" till it exhausts all the subjects/topics on which statutes could be framed under the Two Acts. This agreement goes contrary to the very object and purposes of the Two Acts."

In a somewhat similar situation, the Supreme Court negated the power of direction of the State Government in the matter of service conditions of the Electricity Board

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NC: 2026:KHC:20250 HC-KAR Employees of Bihar 1992 SCC (L & S) 866 (RAKESH RANJAN VERMA & OTHERS V. STATE OF BIHAR & ORS.). In that case, the Board issued an advertisement with regard to recruitment of Junior Electrical Engineers. A merit list was prepared but candidates were not appointed being in excess of the then available posts. The State Government issued directions purporting to exercise powers under Section 78-A and directing the Board to absorb against the post of Junior Electrical Engineers (JEES) which became available later during 1984-85. Board, instead of complying with the directions, issued fresh advertisements. This led to a litigation ultimately reaching the Supreme Court. The Supreme Court in paras 10 and 11 has ruled as under:

"The above provision clearly lays down that the Board shall be guided by such directions on questions of policy as may be given any questions of policy. So far as the appointment of staff is concerned, Section 15 empowers the Board to appoint such officers and employees as may be required to enable the Board to carry out its functions under the Act. Section 15 of the Act reads as under:

"Appointment of staff--The Board may appoint a Secretary and such other officers and employees as may be required to enable the Board to carry out its functions under this Act:

Provided that the appointment of the Secretary shall be subject to the approval of the State Government."

11. Thus, under the proviso to Section 15, it is only the to appointment of the Secretary which is subject to the approval of the State Government. So far as other staff is concerned, it lies with the Board to make appointment of all officers and employees as may be required enable the Board to carry out its functions under the act. Thus, we agree with the view taken by

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NC: 2026:KHC:20250 HC-KAR the High Court in this regard that the direction given by the State Government to appoint the appellants as Junior Engineers by the Board does not involve any matter of policy and it would be an encroachment ☐ the powers of the Board given under Section 15 of the Act. It is not in dispute that the life of the panel was one year which came to an end on September 13, 1985 and that being so no right can be claimed by the applicants after September 13, 1985 and that being so no right can be claimed by the appellants after September 13, 1985 on the basis of inclusion of their names in the panel list of 1984 for the posts of Junior Electrical Engineers. So far of giving any undertaking as is concerned, we are in agreement with the contention of the learned counsel for the undertaking appellants that such cannot that estop such the appellants from being considered for the future vacancies of the Junior Electrical Engineers and the appellants cannot be deprived for all times to come. The Post of Junior Electrical Engineer is now governed by the Bihar State Electricity Board Junior Electrical Engineer (General) Cadre Rules, 1982 and specially Rule 7 read with modification made by notification dated October 14, 1988 issued under Section 79(c) of the Act which reads as follows:-

"Appointments to the posts of Junior Electrical Engineers from amongst the employees of the Board having Diploma in Electrical Engineering will be made on the basis of recommendations of a Selection Committee which will be constituted by the Chairman for the purpose. The Selection Committee will examine the records and interview the candidates who obtain Diploma in Electrical Engineering while in the service of the Board along with those employees who had obtained Diploma Electrical Engineering before joining the service of the Board." who had in

11. The two judgments referred to above support our view that in a covered matter pertaining to employees' emoluments, the Government cannot issue any directions to the University. In the case on hand, the letter dated 15.4.1998 is a direction to the University to extend time bound promotion with all consequential benefits to Sri.Daniel and others in para 4. The said direction is also subject to

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NC: 2026:KHC:20250 HC-KAR conditions. Such directions cannot be issued particularly in the light of an earlier order and in the light of Section 35(m) read with Section 36 of the Act.

12. In conclusion, in the light of our earlier discussions, we hold that the learned Single Judge is right in holding that State Government lacks competence to issue directions to the University in the matter of conditions of service including emoluments of the employees of the University under Section 35(m) of the Act. We dispose of the appeal with the clarification that the observation made by learned Judge in para 10 is to be understood with regard to the service conditions of employees of University covered under Section 35(m) of the Act only. Writ Appeal filed by the Government is dismissed and the order of the learned Single Judge is confirmed with the above clarification. No costs."

13. In the case of the University of Agricultural Sciences Vs. Sri. Dr. Digambarappa and others -

W.A.No.100263/2022 C/w. W.A.No.100264/2022 - dated 24.06.2022 (Dharwad Bench) (Annexure-H), the Hon'ble Division Bench held as under:

"These intra-Court appeals call in question the judgment dated 03.06.2022 rendered in 1st respondent's Writ Petition No.100928/2022 (S-RES). The appeal in W.A. No.100263/2022 is by the University and the companion appeal in W.A. No.100264/2022 is by the 3rd respondent in the writ petition. The said judgment of the learned Single

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NC: 2026:KHC:20250 HC-KAR Judge is to the effect that the writ petitioner should be appointed to the post of Director, he being the senior most, and seniority being the sole criteria.

2. The 1st respondent in both these appeals was the writ petitioner and he has entered caveat through his counsel. The 2nd respondent-State is represented by the learned Government Advocate. 3rd respondent in the Writ Petition is the appellant in W.A. No.100264/2022. He is 3rd respondent in the companion appeal and is represented by a private advocate. All the opposing advocates resist the claim of writ petitioner who opposes the writ appeals. 3rd respondent supports the appeal of University. For convenience of understanding, the parties would be referred to with their ranking in the writ petition

3. FOUNDATIONAL FACTS OF THE CASE:-

a) Petitioner had knocked at the doors of Writ Court for assailing the placement of 3rd respondent in the post of Director of Education and his own placement in the post of Dean. The sole factor for such a claim was that he was the senior most in the

cadre of Professor. For this petitioner heavily banked upon the Government Order dated 14.11.2019 and Chancellor's instructions dated 28.01.2022.

Thus, his essential grievance is that he being the senior most and 3rd respondent admittedly being junior to him, petitioner ought to have been given the post of Director and the 3rd respondent could have been made the Dean.

b) The University and the 3rd respondent had opposed the Writ Petition mainly contending that the appointment in

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NC: 2026:KHC:20250 HC-KAR question is purely temporary and for a period of only six months; such appointments are to be made on rotation basis; petitioner was accordingly appointed as a Director earlier and therefore now the 3rd respondent is given that position; petitioner cannot have any grievance since he is given the post of Dean, which is equivalent to that of Director.

c) The subject letter dated 14.11.2019 issued by the Under Secretary in the Department of Agriculture, is not a Government Order. The Chancellor's letter dated 28.01.2022 only instructs adherence to the extant norms. Mr. Jagadish Patil, learned advocate appearing for the 3rd respondent in the Writ Petition submits that the writ petitioner has not suffered any legal injury to have maintained the writ petition. Learned GA made his submissions on the position of law maintaining equi-distance from the warring private parties.

4. Having heard the learned counsel for the parties and having perused the appeal papers, we are inclined to grant indulgence in the matter for the following reasons:

a) Section 24 of the Universities of Agricultural Sciences Act, 2009 enlists Officers of the University which, inter alia, comprise of Directors & Deans. Section 30 empowers the Vice-Chancellor to appoint officers specified in clauses (iv) to

(ix) of Section 24. It reads as under:

"30. Terms and Conditions of service of other officers of the University.- The Officers of the University specified in clause (iv) to (ix) of section 24 shall be appointed by the Vice-Chancellor with the approval of the Board on such terms and conditions as may be prescribed:

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NC: 2026:KHC:20250 HC-KAR Provided that the Vice-Chancellor may make appointments of such officers as a temporary measure for a period of six months under intimation to the concerned authority of the University."

b) The substantive part in Section 30 provides for making regular appointment, whereas the proviso provides for making appointment to the said posts as a 'temporary measure', presumably because regular appointment takes long time and that posts in question cannot be kept vacant for long. It is significant to note that this Section speaks of appointment to specific posts; it specifies the Appointing Authority i.e., the Vice-Chancellor; provision to the section, however, specifies six months as the tenure of appointment; it also states that such appointments are by way of temporary measure. It is also significant to note that the Vice-Chancellor is treated as 'Conscience Keeper' of the University concerned, said the Apex Court in Marathawada University Vs. Seshrao Balwantrao Chavan, AIR 1989 SC 1582. In the light of all this, the regularity of the impugned proceedings has to be assumed and therefore, the writ petitioner has to make out a very strong case for interference, this being not a case of regular appointment.

c) The concept of ad hoc appointment is not alien to Service Jurisprudence; it is a common knowledge that civil servants are appointed on incharge or independent charge basis, in the posts only as a temporary measure, under Rule 32 of KCSRs. In such cases, ordinarily, the seniority does not much factor. A learned Single Judge of this Court in B.N.DHOTRAD VS. THE BOARD OF

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NC: 2026:KHC:20250 HC-KAR DIRECTORS/CUMAPPELLATE AUTHORITY AND OTHERS ILR 2006 KAR 3163 at para 12 observed as under:

"12. In-charge arrangements and promotion are well understood in Civil Service. Posting an Officer in the lower post to discharge the duties of the higher post without promotion is only an in-charge arrangement. It is the exigencies of public service that will be the relevant consideration and not the consideration of seniority while making such arrangement. A person was posted on independent charge basis does not hold the post on promotion. Under Rule 32 of KCSR, any employee in the next below post/cadre can be placed in charge or independent charge of a higher post. Similarly, in accordance with Rule 68 of the K.C.S.R. a Government servant can be appointed to be incharge of the current duties of an office in addition to his own duties. He need not be the senior most. Generally, such arrangements are made for a short period."

d) Ordinarily seniority has a pivotal role, while making promotions on regular & substantive basis. However, when it comes to making ad hoc appointments as the ones at hands, ordinarily seniority takes the backseat. This is not to say that the authority in making ad hoc placement can choose whomsoever it wants; even there the requirement of fairness & reasonableness cannot be dispensed with. The proviso to Section 30 does not say anything about seniority whilst making appointment as a temporary measure. The appointment process has to be normative since it is done in the exercise of statutory power, is true. There is some discretion that avails to the appointing authority even u/S 30 of the Act also, cannot be disputed. However, any discretion has to be exercised in accordance with the rules of Reason & Justice said Lord Halsbury in SHARP VS. WAKEFIELD (1891) AC 173.

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e) The Board of Management of appellant-University, in its meeting held on 25.01.2019, resolved that such temporary appointments shall be made on rotation basis. This resolution gains credence under Section 13(1)(xiv) of the Act. Following is the text of said Resolution:

"Item No.44.14:

Appointment of various posts of Officers on temporary basis in UAS, Dharwad.

While discussing on this item, the Members of the Board request to change the incumbent Officers immediately as has already been resolved by the Board in its 44th Meeting held on 29.10.2018. There was also a discussion regarding the possibility of inter- changing the positions held by Officers. Dr. P.S.Pandey, Hon'ble Member, suggested that as it is necessary to follow the provisions of UAS Act and the practice of inter changing the positions is not correct and it is not followed in any university including CAU and hence the rotation has to be made by the fresh incumbent. It was agreed upon by all the members of Board of Management and the Board again authorized the Hon'ble vice-Chancellor and requested to take suitable temporary measure for a period of six months inline with the provisions of UAS Act 2009, early as possible, till the Officers' posts are appointed on regular basis."

f) After all in matters of ad hoc appointments, seniority cannot be the sole/soul mantra. The Board comprising of high authorities & experts in its wisdom has prescribed the rule of rotation so that every eligible aspirant for the posts in question shall get some booster that would go a long way in his career. It is also a way to attract & retain talented teachers in the campus. The above Resolution is not in challenge. In fact, the writ petitioner was appointed as the Director during the period between 01.08.2018 & 01.02.2019. Therefore, the Vice-Chancellor had no option

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NC: 2026:KHC:20250 HC-KAR than to appoint 3rd respondent as the Director. Had he not done this, he would have committed an actionable wrong qua the said respondent. Therefore, petitioner is not justified in staking his claim to the post in question over again. An argument to the contrary would breach the Rule of Rotation promulgated by the August Body of the University. If a contention to the contrary is accepted, the senior most person shall continue in the said post beyond six months only with an artificial break every time which the law & reason shun. This aspect having not been discussed in the impugned judgment, there is an error apparent on its face.

g) The vehement contention of learned counsel appearing for the petitioner that the Government Order dated 14.11.2019 mandatorily prescribes the Rule of Seniority is misconceived. Firstly, it is only an ordinary letter issued by the Under Secretary, Mr. H.N.Lakshmanagowda. The same reads as under:

"PÀÉÁðlPÀ ,ÀPÁðgÀ ,ÀASÉå / PÀÈÈ 24 PÀÈ« 2019 PÀÉÁðlPÀ ,ÀPÁðgÀzÀ ,ÀaÁÀ@AiÀÄ, §°ÄÄÄÄ°ÀrUÀ¼À PÀlÖqÀ, "ÉAUÀ¼ÀÆgÀÄ, ÇÉÁAPÀ: 14.11.2019, "dgÀÆgÀÄ"

EªÀjAzÀ, ,ÀPÁðgÀzÀ PÁAiÀÄðzÀ²ð, PÀÈ¶ E⁻ÁÉ, "ÉAUÀ¼ÀÆgÀÄ.

EªÀjUÉ, PÀÄ® ¥ÀwUÀ¼ÀÄ, PÀÈ¶ «±Àé«zÁå»®AiÀÄ, "ÉAUÀ¼ÀÆgÀÄ/zsÁgÀªÁqÀ/gÁAiÀÄZÀÆgÀ PÄ®¥ÀwUÀ¼ÀÄ, PÀÈ¶ªÄvÄÄÛvÉÆÄlUÁjPÉ «±Àé«zÁå»®AiÀÄ, ²ªÄÉÆUÄÎ, PÄ®¥ÀwUÀ¼ÀÄ,

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NC: 2026:KHC:20250 HC-KAR vÉÆÄlUÁjPÉ «±Àé«zÁå»®AiÀÄ, "ÁUÀ®PÉÆÄmÉ.ªAiÁÉÀågÉÄ, «µÄAiÀÄ: gÁdå PÀÈ¶ «±Àé«zÁå»®AiÀÄ °ÁUÀÆ vÉÆÄlUÁjPÉ «±Àé«zÁå»®AiÀÄUÀ¼À°è SÁ°-ÄgÀÄªÀ ÇçüPÁj °ÄÄzÉYUÀ½UÉ °ÉZÄÄÑªÀj ¥Àæ"Ás gÀzÀ°èj, ÄªÀ PÄÄjvÄÄ.

* * * * *ªÉÄÄ®lAqÀ «µÄAiÀÄzÀ §UÉÎªAiÁÉÀª±À,ÀPÀgÀÄ, «zsÁÉÀ ¥ÀjµÄvî,ÀzÀ,ÀågÀÄ °ÁUÀÆ EvÀgÀgÀÄ, gÁdå PÀÈ¶ «±Àé«zÁå»®AiÀÄ °ÁUÀÆ vÉÆÄlUÁjPÉ «±Àé«zÁå»®AiÀÄUÀ¼À°è SÁ°-ÄgÀÄªÀ ÇçüPÁj °ÄÄzÉYUÀ½UÉ eÉÄµÄ×vÉAiÀÄÉÄÄß »®ðQë¹, »AiÀÄªÀÄ"Á»gÀªÁV ¥Àæ"sÁgÀzÀ°èj,ÄÄwÛgÀÄªÀ §UÉÎ w½¹gÀÄvÁÛgÉ.

gÁdåªÄlÖzÀ,ÀªÄÉÀéAiÀÄ,À«wAiÀÄ,À"ÉsAiÀÄ°è PÉÊUÉÆAqÀ »tðAiÀÄzÀAvÉ gÁdå PÀÈ¶ «±Àé«zÁå»®AiÀÄ °ÁUÀÆ vÉÆÄlUÁjPÉ «±Àé«zÁå»®AiÀÄUÀ¼À°è SÁ°-ÄgÀÄªÀ ÇçüPÁj °ÄÄzÉYUÀ½UÉ °ÉZÄÄÑªÀj ¥Àæ"ÄgÀzÀ°èj,À®Ä »tð-Ä¹zÄY°è, ,ÀEPÀÛ ÇçüPÁjUÀ¼ÀÉÄÄß eÉÄµÄ×vÁ ÇÉÄ,ÁgÀ ¥Àæ"sÁgÀzÀ°èj,ÄªÀ CA±ªÄÉÄÄß KPÀgÀÆ¥À ¥Àj»AiÀÄªÄ PÀgÀrÉÀ°è,ÉÄj¹ ¥Äj²Ä°,À⁻ÁUÄwÛÉ.

DzÄYjAzÀ ¥æ,ÄÄÛvÀ gÁdåzÀ J⁻Áè PÀÈ¶ «±Àé«zÁå»®AiÀÄ, PÀÈ¶ªÄvÄÄÛ vÉÆÄlUÁjPÉ «±Àé«zÁå»®AiÀÄ °ÁUÀÆ vÉÆÄlUÁjPÁ «±Àé«zÁå»®AiÀÄUÀ¼À°è SÁ°-ÄgÀÄªÀ ÇçüPÁj °ÄÄzÉYUÀ½UÉ °ÉZÄÄÑªÀj ¥Àæ"Ás gÀzÀ°èj,À®Ä »tð-Ä¹zÄY°è eÉÄµÄ×vÁ ÇÉÄ,ÁgÀªÉÄ »jAiÀÄ ÇçüPÁgÀUÀ¼ÀÉÄÄßªAiÁvÄæ °ÉZÄÄÑªÀj ¥Àæ"Ás gÀzÀ°èj,ÄvÀPÀlZÄY° °ÁUÀÆ M§â ÇçüPÁjUÉ MAzÄÄ °ÄÄzÉYVAvÀ °ÉaÑÉÀ °ÄÄzÉYUÀ½UÉ °ÉZÄÄÑªÀj ¥Àæ"Ás gÀzÀ°è Ej,ÄvÀPÀlZÄY®è JAzÄÄ vÄªÄUÉ w½¹,À®Ä »zÉÄð¹vÀÉÁVzÉYÉÉ.

vÄªÄÄ £ÄA§ÄUÉAiÀÄ (°ÉZi.JÉi.®PÄëöätUËqÀ),ÀPÁðgÀzÀ DçÄÉÀ PÁAiÀÄðzÀ²ð, PÀÈ¶ E⁻ÁÉ (,ÉÄªÉUÀ¼ÀÄªÄvÄÄÛ,ÀªÄÉÀéAiÀÄ)"

The letter lacks the trappings of a Government Order. This apart, what authority the Under Secretary had, to prescribe seniority as the norm for appointments of the kind is not demonstrated. Learned counsel could not secure any support from the reading of Section 8 & 10 of the Act to substantiate his contention that the Government has power to issue such instructions. Section 8 gives some power, arguably true; however prescribed conditions & circumstances for such interference are apparently lacking. Section 10 gives power to the Chancellor to do certain things

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NC: 2026:KHC:20250 HC-KAR at the instance of Government; but the Government on it's own can not issue any direction to the University.

h) Universities are not the notional extensions of the government departments, nor their vassals. They are autonomous bodies and therefore their autonomy should be respected. The Secretaries of the Government Departments cannot interfere in the affairs of Universities in the absence of statutory power and the justification for its exercise, both of which are absent in the case at hands. A learned single Judge of this Court in DR. PARAPPA SHANKARAPPA VS.

THE SECRETARY TO GOVERNMENT, ILR 1999 KAR 282 had pungently observed, at paragraph 10 as under:

"10. So far as the second question regarding powers of the State Government to give directions to the Universities are concerned, despite turning of each page of the Universities Act both by the learned Advocate-General as also the Counsel appearing for the petitioners and the University, no provision could be located under which the State Government can give a direction to the University with regard to the discharge of its functions or pertaining to the matters which are to be essentially governed by the statutes which are framed under Section 35 read with Section 36 of the Act. In that view of the matter it is expected rather directed that the State Government should henceforth forbear from giving any direction to any University established under the Universities Act which are required to be governed by the specific statutory provisions or the delegated legislations like the statutes. Any violation in this regard on the part of the Government will be dealt with as committing contempt of this Court. I find making of such observation is necessary because in various cases I have found that the Government, of late, have been prevailing on the Universities which are creatures of the Act by treating those as departments of the Government. This impression needs to be dispelled."

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NC: 2026:KHC:20250 HC-KAR The above observations were made in September 1998 i.e., a little less than a quarter century ago. However, the governmental authorities being as callous as can be, continue to poke their nose in the affairs of the Universities. This, we say with no joy in heart. What further irks us is that the above letter has been issued by an Under Secretary of the Department, in gross disregard of the resolution dated 25.01.2019 passed by the Board of Management.

i) The vehement contention of learned counsel for the writ petitioner that the matter having been brought to the notice of the Chancellor, His Excellency has caused a letter dated 28.01.2022 directing the University to follow the Rule of Seniority as a norm for making ad hoc appointment to the posts in question, again is bit difficult to agree with. That is not its purport. The said letter is

reproduced below:

KARNATAKA GOVERNOR'S SECRETARIAT RAJ BHAVAN, BENGALURU No. GS 02 AUD 2022 DATE: 28-01- FROM The Special Secretary to Governor, Raj Bhavan, Bengaluru.

TO The Vice Chancellor, University of Agricultural Sciences, Krishinagar, Dharwad.

Sir,

Sub: Forwarding of D O Letter of Sri

Basavaraj S. Horatti, Hon'ble Chairman K L C -reg.

Ref: D.O. letter No. KLC: CHMN: 1484 :
2022, dated 13-01-2022 from Sri
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NC: 2026:KHC:20250

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Basavaraj S. Horatti, Hon'ble
Chairman, Karnataka Legislative
Council.

With reference to the above subject, I am directed to forward herewith a copy of D.O. letter cited at reference which is self explanatory.

Further you are directed to ensure strict compliance to the laid down Rules/Statutes/Regulations etc., in regard to placing of Professors Higher Academic Grades and Senior professors as in-charge of Director/Dean/Registrar posts.

Yours faithfully, (Prathibha D. Habbu) Under Secretary to Governor(U)"

A perusal of the letter shows that a direction is issued by the Chancellor to the University that in making appointment to posts of the kind, the norms laid down in Rules, Statutes & Regulations should be strictly followed. It has not said anything about seniority. On the other hand the Board of Management has consciously prescribed the norm of rotation, as the mode of appointment. The very idea of 'appointment by rotation' excludes the notion of seniority. The Vice-Chancellor in issuing the impugned appointment orders has followed the extant norms. Even this aspect of the matter has escaped due attention of the learned Single Judge. Thus, there is an added error apparent on the face of the impugned judgment.

j) Learned counsel for the Writ petitioner seeks to justify the impugned Judgment contending that the University orders that are quashed by the learned Single Judge suffered from the infirmity of discrimination inasmuch as only his client was

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NC: 2026:KHC:20250 HC-KAR singled out for a step motherly treatment, all others having been left untouched even when he had a very short stint of service. We fail to understand as to how others being not displaced would come to the rescue of petitioner in matters like this, which involve a host of factors that fall outside judicial evaluation. It is not that the petitioner has been left high & dry. Admittedly, he too has been given the post of Dean. The contention that the post of Dean is comparatively a bit lower compared to that of Director, does not merit deeper examination, at our hands given the fact that both the posts carry same pay scale & emoluments. Even the learned Single Judge treats the posts enlisted in Clauses (iv) to (ix) of Section 24 as constituting one common cadre. Clauses 1 & 4 of Section 31 Read with Clauses (iv) to (ix) of Section 24 of the Act lend some credence to this view. If the University states that posts are equal, the one who questions it has to make out a strong case to substantiate the contra. That being the position, no prejudice is shown to have been caused to the Writ petitioner by virtue of impugned orders of the University.

In the above circumstances, these appeals succeed. The impugned Judgment of the learned Single Judge is set at naught and as a consequence the University orders of appointment that were quashed by the said Judgment are hereby resurrected.

Costs made easy."

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NC: 2026:KHC:20250 HC-KAR

14. In the case of State of Uttar Pradesh Vs. Preetam Singh and others - (2014) 15 SCC 774, the Apex Court held as under:

"The Uttar Pradesh Avas Evam Vikas Parishad (hereinafter referred to as "the Vikas Parishad") is a corporate body. It came into existence, consequent upon the promulgation of the Uttar Pradesh Avas Evam Vikas Parishad Adhiniyam, 1965 (hereinafter referred to as "the 1965 Act"). The employees of the Vikas Parishad were members of a Contributory Provident Fund Scheme. The Vikas Parishad desired to grant its employees better retiral benefits. A proposal was made to extend pensionary benefits to the employees of the Vikas Parishad, in place of the existing Contributory Provident Fund Scheme.

2. In furtherance of the aforesaid objective, a Resolution dated 21-2-1995 was passed, proposing to replace the existing Contributory Provident Fund Scheme, to the Pension/Family Pension and Gratuity Scheme. Before implementation of the

Resolution dated 21-2-1995, the Vikas Parishad considered it expedient to consult the State Government. In response to the aforementioned consultation, the State Government through a Communication dated 16-5-1996 approved the aforesaid substitution conditionally. The conditions depicted in the aforesaid approval dated 16-5-1996, are being extracted hereunder:

"Kindly refer to your Letter No. 213/P-1 dated 24-4- 1995 on the aforesaid subject. In this regard, I have been

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NC: 2026:KHC:20250 HC-KAR directed to say that the State Government has no objection to the proposal of implementing Pension/Family Pension and Gratuity Scheme in place of CPF Scheme in Uttar Pradesh Avas Evam Vikas Parishad. But subject to condition that no financial assistance will be given by the State Government for implementation of this Scheme and this Scheme will be run by the Board itself from the revolving funds created by it."

(emphasis supplied)

3. Consequent upon the receipt of the aforesaid approval from the State Government, the Vikas Parishad circulated a Letter dated 9-7-1996 requiring its employees to submit their options, as to whether they were desirous of shifting to the Pension/Family Pension and Gratuity Scheme, in place of the existing Contribution Provident Fund Scheme.

4. At the instant juncture, a very vital letter came to be issued by the State Government on 30-9-1997. The relevant extract of the aforesaid letter is being reproduced hereunder:

"I have been directed to say that in order to implement the subject scheme, it is not necessary to initiate any proceedings required under clause (c) of the Employees' Provident Funds and Miscellaneous Provisions Act, 1952 of the Central Government. Because Avas Evam Vikas Parishad is governed by the provisions of the Uttar Pradesh Avas Evam Vikas Parishad Act, 1965 and specific provisions to this effect have been laid down in Section 95 of the said Act, 1965 according to which necessary proceedings are to be initiated for obtaining option from the employees for accepting and/or not accepting the proposed Pension Scheme."

(emphasis supplied) A perusal of the aforesaid letter reveals, that even though the State Government had granted conditional approval to the Pension/Family Pension and Gratuity Scheme, through its Communication dated 16-5-1996, the State Government

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NC: 2026:KHC:20250 HC-KAR expressed the opinion, that the Vikas Parishad did not need the approval of the State Government for the implementation of the Pension/Family Pension and Gratuity Scheme.

5. Insofar as the instant aspect of the matter is concerned, the State Government in its Letter dated 30-9-1997 clearly informed the Vikas Parishad, that it had the power to deal with the above issue of its own, under Section 95 of the 1965 Act.

6. Based on the conditional approval granted by the State Government through its Communication dated 16-5-1996, and also the clarificatory Letter issued by the State Government on 30-9-1997, the Vikas Parishad passed a Resolution on 5-11-1997 approving the Pension/Family Pension and Gratuity Scheme. In granting the aforesaid approval, the Vikas Parishad followed the pensionary scheme applicable to civil servants of the State of Uttar Pradesh.

7. Before the Resolution dated 5-11-1997 could be implemented, the Director General of Bureau of Public Enterprises addressed a Communication dated 19-11-1997 to the State Government, informing it, that the Vikas Parishad had not sought its approval before the implementation of the Pension/Family Pension and Gratuity Scheme. In sum and substance, the Director General of Bureau of Public Enterprises informed the State Government, that the action taken by the Vikas Parishad in implementing the above scheme without its approval, was not in consonance with law. On the receipt of the letter from

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NC: 2026:KHC:20250 HC-KAR the Director General of Bureau of Public Enterprises, the State Government by its Order dated 26-11-1997 stayed the implementation of the Pension/Family Pension and Gratuity Scheme.

8. Whilst taking the above action, the State Government constituted a Sub-Committee to examine the veracity and viability of the conversion of the Contributory Provident Fund Scheme to the Pension/Family Pension and Gratuity Scheme, not only with reference to the employees of the Vikas Parishad, but with reference to the employees of the other Statutory Corporations, Development Authorities and Nigams in the State of Uttar Pradesh. The aforesaid Sub-Committee, under the Chairmanship of the Chief Secretary of the State, held a meeting on 3-10-1998. In the above meeting, the Sub-Committee arrived at the conclusion, that there was no justification for the implementation of the Pension Scheme in any Statutory Corporations, Development Authorities or Nigams in the State of Uttar Pradesh. It was also the view of the Sub-Committee that the existing Contributory Provident Fund Scheme, should be continued for all the employees, for the time being.

9. Even though the above recommendation was made by the Sub-Committee, yet the Sub-Committee on 2-2-1999 expressed the view, that the aforesaid general determination recorded in its meeting dated 3-10-1998, should not be made applicable to the Vikas Parishad. Taking into consideration the excellent financial condition of the Vikas

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NC: 2026:KHC:20250 HC-KAR Parishad, the Sub-Committee observed that the Vikas Parishad should be permitted to take steps to introduce the Pension/Family Pension and Gratuity Scheme. It was however clearly indicated that the Pension/Family Pension and Gratuity Scheme if introduced for employees of the Vikas Parishad the same would not create any financial liability on the State Government.

10. Based on the recommendations of the Sub- Committee (in its meeting dated 2-2-1999), the State Government passed an order dated 14-9-1999, withdrawing its ban/restriction on the implementation of the Pension/Family Pension and Gratuity Scheme. The relevant extract of the Letter dated 14-9-1999 is being reproduced below:

"In this regard, I have been directed to say that the Government after due consideration in the matter has decided to withdraw its bar/restriction imposed on the implementation of the subject Pension Scheme for the employees of the Board, subject to the following conditions--

(1) Implementation of the Pension Scheme in the Board will be completely different from the pension being given to the employees of the State Government and this Scheme will be developed in the form of a distinct/separate trust based on CPF and such a trust will be run and operated by a Third Party Pension Fund Manager. This Pension Scheme shall not have any connection/relation with the Pension Scheme of the government servants in any manner whatsoever. This Pension Scheme will be completely autonomous and will depend on the financial condition of the pension funds; (2) Money which will be deposited on this head/count, will not be spent for any other count/head, meaning thereby that money so

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NC: 2026:KHC:20250 HC-KAR deposited on this count will be irreversible for any other purposes and it will be operated by the Trust; (3) Pension Scheme will be maintained financially on the basis of contributions made by the Board towards CPF and no money, apart from the above, will be paid either by the Board or by the State Government. Please note that if this Scheme closes down due to any reason or due to non-availability of pension funds, then in that eventuality neither the Government nor the Board will be responsible for such a closure;

(4) Trust will be fully responsible for all the financial and economical aspects of the funds of this Scheme, based upon arrangements made with the Third Party Pension Fund Manager and Government/Board will not be responsible for any loss whatsoever;

(5) Representatives nominated by the Secretary, Housing and Secretary, Finance, will be amongst members of the Trust which will be created for the implementation of the Pension Scheme of the Board; (6) Commissioner, Housing and Financial Controller of the Board will be personally

responsible for ensuring strict compliance with the aforesaid conditions; and (7) These orders are being issued on the basis of consent accorded by the Finance Department vide its D.O. No. 140/99-C-Ten (1) dated 9-8-1999."

(emphasis supplied) The aforesaid position was sought to be endorsed by the State Government on 7-5-2003, wherein the State Government reiterated the position, that no financial assistance will be provided by the State Government to the Vikas Parishad for implementation of the Pension/Family Pension and Gratuity Scheme.

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NC: 2026:KHC:20250 HC-KAR

11. All of a sudden, the State Government issued yet another Letter dated 13-9-2005 staying the earlier Government Order dated 7-5-2003 (relevant extracts wherefrom have been reproduced hereinabove). Thereupon, through a further Communication dated 12-7-2007, the State Government withdrew its approval altogether. Through the above Letter dated 12-7-2007, the State Government clearly informed the Vikas Parishad, that it could not implement the Pension/Family Pension and Gratuity Scheme. It further informed the Vikas Parishad, that employees of Public Enterprises, Statutory Corporations, Development Authorities and Nigams, who are covered by the Employees' Provident Funds and Miscellaneous Provisions Act, 1952 of the Central Government, and those to whom different Contributory Provident Fund Schemes were already applicable, were liable to be governed by the said provisions and schemes.

12. The denial of permission by the State Government, as also, the incorporations of the conditions mentioned above, was sought to be assailed by the employees of the Vikas Parishad, before the High Court of Judicature of Allahabad (Lucknow Bench) (hereinafter referred to as "the High Court"), by filing Writ Petition No. 582 (SB) of 2000. The aforesaid writ petition was allowed by the impugned judgment dated 16-1-2009 [Preetam Singh v. State of U.P., 2009 SCC OnLine All 33 : (2009) 2 All LJ 702] . The Orders issued by the State Government dated 13-9-2005 and 12-7-2007 were expressly quashed. A writ in the nature of mandamus was issued by the High Court to the

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NC: 2026:KHC:20250 HC-KAR Vikas Parishad, requiring it to implement the Pension/Family Pension and Gratuity Scheme. In compliance with the aforesaid direction, the Vikas Parishad implemented the Pension/Family Pension and Gratuity Scheme, through Notification dated 19-5-2009. The relevant extract of the aforesaid Notification is being reproduced hereunder:

"Now therefore, the U.P. Avas Evam Vikas Parishad, in exercise of the power under clauses (f), (i) and (n) of sub-section (1) of Section 95 of the U.P. Avas Evam Vikas Parishad Adhiniyam, 1965 (U.P. Act 1 of 1996) has decided that the Pension/Family Pension and Gratuity admissible to the officers and employees of the State Government, which is governed by the following rules, schemes and government

orders shall also be admissible (excluding pension commutation) to the officers and employees of the U.P. Avas Evam Vikas Parishad:

1. Civil Service Regulations as applicable in U.P. As amended
2. Uttar Pradesh Liberalised Pension Rules, 1961. -do-
3. U.P. Retirement Benefit Rules, 1961 -do-
4. New Family Pension Scheme, 1965 -do-
5. All orders of Finance Department of U.P. Government as -do-
related to Pension/Family Pension/Gratuity
6. Newly defined Contributory Rules according to Notification -do-

No. Sa-3-379/das-2005-301(9) of 2003 dated 28-3-2005 applicable to officers and employees of the State Government, who have joined services on 1-4-2005 or onwards The orders with respect to the Pension/Family Pension/Gratuity issued from time to time by the State Government shall also be applicable to the officers and employees of the U.P. Avas Evam Vikas Parishad." It would be pertinent to mention, that the aforesaid notification was expressly extended to such employees of the Vikas Parishad, who were in service on 1-1-1996. The Pension/Family Pension and Gratuity Scheme in terms of the aforesaid notification, would be applicable only till the

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NC: 2026:KHC:20250 HC-KAR introduction of the newly defined Contributory Fund Rules framed by the State Government, as were applicable to employees of the Vikas Parishad who had entered its service w.e.f. 1-4-2005.

13. In raising a challenge to the impugned judgment rendered by the High Court on 16-1-2009 [Preetam Singh v. State of U.P., 2009 SCC OnLine All 33 : (2009) 2 All LJ 702] , it was the vehement contention of the learned counsel for the State of Uttar Pradesh, that the scheme could not have been formulated, and given effect to in the absence of an express approval by the State Government. Insofar as the instant contention is concerned, the learned counsel for the appellant placed reliance on the Uttar Pradesh State Control Over Public Corporation Act, 1975. Our pointed attention was invited to Section 2(1) thereof, which is being extracted hereunder:

"2. (1)Power to issue directions to statutory bodies.-- Every statutory body (by whatever name called), established or constituted under any Uttar Pradesh Act, excepting Universities governed by the Uttar Pradesh State Universities Act, 1973 as re-enacted and amended by the Uttar Pradesh University (Re-enactment and Amendment) Act, 1974, shall, in the discharge of its functions, be guided by such

directions on questions of policies, as may be given to it by the State Government, notwithstanding that no such power has expressly been conferred on the State Government under the law establishing or constituting such statutory body."

(emphasis supplied) Based on the aforesaid provisions, it was the submission of the learned counsel for the appellant, that the State of Uttar Pradesh, through its Communications dated 13-9-2005 and 12-7-2007, must be deemed to have issued directions to the

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NC: 2026:KHC:20250 HC-KAR Vikas Parishad, restraining it from implementing the Pension/Family Pension and Gratuity Scheme. The aforesaid directions, according to the learned counsel, were binding on the Vikas Parishad.

14. We have given our thoughtful consideration to the first contention advanced at the hands of the learned counsel for the appellant. There can be no doubt that it is open to the State Government to issue directions on questions of policy to all the Public Corporations in the State of Uttar Pradesh, in furtherance of the mandate contained in Section 2(1) of the 1975 Act. It would however be pertinent to mention that the above directions could be issued only in respect of questions of policy having a nexus to the "discharge of its functions". Insofar as the Vikas Parishad is concerned, we are of the view that the functions of the Vikas Parishad are relatable only to the functions stipulated in Section 15 of the 1965 Act.

15. Section 15 aforementioned is being reproduced hereunder:

"15.Functions of the Board.--(1) Subject to the provisions of this Act and the rules and regulations, the functions of the Board shall be--

(a) to frame and execute housing and improvement schemes and other projects;

(b) to plan and coordinate various housing activities in the State and to ensure expeditious and efficient implementation of housing and improvement schemes in the State;

(c) to provide technical advice for and scrutinise various projects under housing and improvement schemes sponsored or assisted by Central Government or the State Government;

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(d) to assume management of such immovable properties belonging to the State Government as may be transferred or entrusted to it for this purpose;

(e) to maintain, use, allot, lease, or otherwise transfer plots, buildings and other properties of the Board or of the State Government placed under the control and management of the Board;

(f) to organise and run workshops and stores for the manufacture and stockpiling of building materials;

(g) on such terms and conditions as may be agreed upon between the Board and the State Government, to declare houses constructed by it in execution of any scheme to be houses subject to the U.P. Industrial Housing Act, 1955 (U.P. Act 23 of 1955);

(h) to regulate building operations;

(i) to improve and clear slums;

(j) to provide roads, electricity, sanitation, water-supply and other civic amenities and essential services in areas developed by it;

(k) to acquire movable and immovable properties for any of the purposes before mentioned;

(l) to raise loans from the market, to obtain grants and loans from the State Government, the Central Government, local authority and other public corporations, and to give grants and loans to local authorities, other public corporations, housing cooperative societies and other persons for any of the purposes before mentioned;

(m) to make investigation, examination or survey of any property or contribute towards the cost of any such investigation, examination or survey made by any local authority or the State Government;

(n) to levy betterment fees;

(o) to fulfil any other obligation imposed by or under this Act or any other law for the time being in force; and

(p) to do all such other acts and things as may be necessary for the discharge of the functions before mentioned.

(2) Subject to the provisions of this Act and the rules and regulations, the Board may undertake, where it

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NC: 2026:KHC:20250 HC-KAR deems necessary, any of the following functions, namely--

(a) to promote research for the purpose of expediting the construction of and reducing the cost of buildings;

(b) to execute works in the State on behalf of public institutions, local authorities and other public corporations, and departments of the Central Government and the State Government;

(c) to supply and sell building materials;

(d) to coordinate, simplify and standardise the productions of building materials and to encourage and organise the prefabrication and mass reduction of structural components;

(e) with a view to facilitating the movement of the population in and around any city, municipality, town area or notified area, to establish, maintain and operate any transport service, to construct, widen, strengthen or otherwise improve roads and bridges and to give financial help to others for such purposes;

(f) to do all such other acts and things as may be necessary for the discharge of the functions before mentioned."

16. In our view, the State of Uttar Pradesh, had the right to issue directions only in respect of the functions assigned to the Vikas Parishad under Section 15 of the 1965 Act. The conditions of service of employees, in our considered view, do not constitute the functions of the Vikas Parishad, and as such, we are satisfied that the directions contemplated under Section 2(1) of the 1975 Act, do not extend to the directions issued by the State of Uttar Pradesh in the impugned Orders dated 13-9-2005 and 12-7-2007. We therefore find no merit in the first contention advanced by the learned counsel for the appellant.

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17. Insofar as the second contention is concerned, it was the vehement contention of the learned counsel for the appellant, that the State of Uttar Pradesh is to shoulder the financial liabilities of the Vikas Parishad, in the event of its dissolution. Insofar as the instant aspect of the matter is concerned, the learned counsel for the appellant placed reliance on Section 93 of the 1965 Act. The said provision is being extracted hereunder:

"93. Dissolution of the Board.--(1) If the State Government is of the opinion that the Board has failed to carry out its functions under this Act or that for any other reason, it is not necessary to continue the Board, it may, by notification in the Gazette, dissolve the Board from such date as may be specified in the notification. (2) Upon the publication of a notification under sub-section (1) dissolving the Board--

(a) the Adhyaksh, the Housing Commissioner and all members of the Board shall, as from the date of dissolution, vacate their offices;

(b) all the powers and functions which may, by or under this Act, be exercised and performed by or on behalf of the Board or the Housing Commissioner shall, as from the date of dissolution, be exercised and performed by, and all subsisting contracts, agreements and other instruments to which the Board or the Housing Commissioner is a party or which are in favour of the Board or the Housing Commissioner may be enforced or acted upon, and all suits, appeals and other legal proceedings pending by or against the Board or the Housing Commissioner may be continued, prosecuted or enforced, by or against the State Government or such authority or person as it may appoint in this behalf;

(c) the fund of, and other properties vested in, the Board shall vest in the State Government; and

(d) all liabilities, legally subsisting and enforceable against the Board, shall be enforceable against the State Government to the extent of the fund and properties of the Board vested in it.

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NC: 2026:KHC:20250 HC-KAR (3) Nothing in this section shall affect the liability of the State Government in respect of debentures guaranteed by it under sub-section (2) of Section 59. (4) Notwithstanding anything contained in the foregoing provisions of this section, the State Government may at any time again establish a Board under Section 3 and appoint a Housing Commissioner under Section 7, and thereupon--

(a) the powers and functions as well as the rights and liabilities in relation to contracts, agreements and other instruments, and suits, appeals and other legal proceedings referred to in clause (b) of sub-section (2) shall re-vest in the Board or the Housing Commissioner, as the case may be;

(b) the fund and other properties referred to in clause

(c) of sub-section (2) remaining with the State Government after meeting any liabilities referred to in clause (d) thereof shall re-vest in the Board."

18. Having perused Section 93 of the 1965 Act, we are satisfied, that under clause (d) of Section 93(2), the financial liability transferable to the State Government in the event of dissolution of the Board, is limited to the fund and properties of the Board vested in it. In other words, the State of Uttar Pradesh in case of dissolution of the Board, would only bear the responsibility of discharging the liabilities, to the extent of the properties of the Board which stand transferred to it. Thus viewed, we are of the opinion that no financial liability would stand transferred to the State Government, even in the event of the dissolution of the Vikas Parishad. Accordingly, we find no merit even in the second contention advanced at the hands of the learned counsel for the appellant.

19. Despite the objections raised by the learned counsel for the appellant, we shall also venture to determine,

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NC: 2026:KHC:20250 HC-KAR whether the Vikas Parishad was competent to frame regulations, whereby it could extend the Pension/Family Pension and Gratuity Scheme to its employees. In this behalf, it is relevant to examine Section 95 of the 1965 Act. The aforesaid provision is being produced hereunder:

"95.Power to make regulations.--(1) The Board may, by notification in the Gazette, make regulations providing for--

(a) the time and place of, and the manner of convening, the meeting of the Board and its committees and Avas Samitis and their postponement and adjournment;

(b) the procedure and the conduct of business at meetings of the Board and of its committees and Avas Samitis;

(c) the appointment, constitution and procedure of committees;

(d) the delegation of powers by the Housing Commissioner and officers of the Board;

(e) the duties of officers and servants of the Board;

(f) the conditions of services of officers and servants of the Board;

(g) the preparation of plans and estimates for works;

(h) the preparation of budgets and estimates;

(i) the authority on which moneys may be paid from the Board's fund;

(j) the manner of publication of public notices;

(k) the stamping of facsimile of signatures of the Housing Commissioner and officers of the Board on notices, bills and other documents;

(l) the fees payable for copies of documents, estimates and plans issued by the Board;

(m) the management, use and allotment of buildings constructed under any housing or improvement scheme;

(n) any other matter which is to be or may be provided for by regulations under this Act or the rules.

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NC: 2026:KHC:20250 HC-KAR (2) If any regulation is repugnant to any rule then the rule whether made before or after the regulations shall prevail and the regulation shall to the extent of the repugnancy be void."

A perusal of clause (f) of Section 95(1), with clause (l) of Section 95(1) would reveal, that the Vikas Parishad is vested with the right to make regulations, so as to extend to its employees a scheme in the nature of Pension/Family Pension and Gratuity Scheme i.e. a scheme similar to the one framed by the Vikas Parishad on 19-5-2009.

20. For the reasons recorded hereinabove, we find no merit in this appeal, and the same is accordingly dismissed.

21. It is also necessary for us to determine the consequence of the State of Uttar Pradesh, having approached this Court, to assail the impugned judgment dated 16-1-2009 [Preetam Singh v. State of U.P., 2009 SCC OnLine All 33 : (2009) 2 All LJ 702] . This Court having entertained the petition filed by the appellant, passed interim directions on 7-8-2012 [State of U.P. v. Preetam Singh, IA No. 7 in Civil Appeal No. 6307 of 2010, order dated 7-8-2012 (SC), wherein it was directed: "Taken on board. There shall be stay of the order passed in Writ Petition No. 1433 of 2011 dated 24-7-2012. IA No. 7 is disposed of. Registry is directed to list IA No. 4 on 27-8-2012, if it is in order."] , which had the effect of staying the implementation of the directions issued by the High Court, namely, of staying the implementation of the Notification dated 19-5-2009. As a result, the employees governed by the Notification dated 19-5-2009, were paid their retiral dues under the Contributory Provident Fund

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NC: 2026:KHC:20250 HC-KAR Scheme. Since we have now affirmed the impugned judgment of the High Court, dated 16-1-2009 [Preetam Singh v. State of U.P., 2009 SCC OnLine All 33 : (2009) 2 All LJ 702] , it is apparent that all the eligible employees of the Vikas Parishad will be governed by the Notification dated 19- 5-2009. They will therefore be entitled to the pensionary benefits from the date of their retirement. Undoubtedly, they have been denied the said retiral benefits, consequent upon the interim orders passed by this Court, at the behest of the State of Uttar Pradesh. In the above view of the matter, we direct the Vikas Parishad to release the pensionary benefits to the retired employees governed by the Notification dated 19-5-2009, within three months from today. While determining the pensionary benefits payable to the eligible retired employees up to date, if it is found that any of the retired employees is entitled to financial dues in excess of those already paid under the Contributory Provident Fund Scheme, the said employee(s) will be paid interest on the said amount @ 9% p.a. The burden of the aforesaid interest component on the differential amount will be discharged by the Vikas Parishad in the first instance. The same shall, however, be recovered

from the State of Uttar Pradesh, who is solely responsible for the interest ordered to be paid to the employees concerned."

15. In the case of the Registrar and others Vs. Sri. Chikkanna and others - W.A.No.705/2024 & Con. Matters -

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NC: 2026:KHC:20250 HC-KAR dated 16.12.2025, the Hon'ble Division Bench of this Court held as under:

"Writ Appeals No.705/2024, 629/2024, 711/2024 and 742/2024 are filed by the University of Agricultural Science ('University' for short) challenging the common order dated 07.03.2024 passed by the learned Single Judge in Writ Petitions No.10632/2021 c/w. 4553/2022, 27469/2023 and 27478/2023. Contempt of Court Case No.646/2024 is filed alleging willful disobedience of the Order dated 07.03.2024 passed by the learned Single Judge in W.P.No.27478/2023.

2. We have heard Shri V. Lakshminarayana, learned Senior Counsel as instructed by Shri. Vikram Balaji, learned advocate and Shri. I. Tharanath Poojary, learned senior counsel as instructed by Smt. Veena T.N, learned advocate appearing for the private parties; Shri Sachin B.S., and Shri M. Sreenivasa, learned counsel appearing for the University; and Shri Reuben Jacob, learned Additional Advocate General along with Smt. Pramodhini Kishan, learned Additional Government Advocate for the State.

3. The facts of the case as pleaded by the appellants are that the respondents are long-serving daily- wage workers of the University of Agricultural Science ('University' for short) - many of whom have completed 30- 35 years of service. The workers sought for regularisation on completion of 10 years of service in parity with others who were already regularised, and non-discrimination in pay and service benefits.

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NC: 2026:KHC:20250 HC-KAR

4. The University in its 379th meeting dated 05.01.2019, resolved to regularise 128 daily-wage employees including some of the writ petitioners. However, the Government by letter dated 18.02.2019, withheld approval to the Board's decision and later rejected the regularisation proposal, stating that the employees were covered under the Welfare Act and not were eligible for absorption. Consequently, following the Government's refusal, the Board in its 386th meeting on 01.09.2020, withdrew the earlier proposal for regularisation.

5. It was further contended that 171 daily wage employees including some of the private respondents had already been granted all statutory benefits under the Karnataka Daily Wage Employees' Welfare Act, 2012 ('Welfare Act, 2012' for short) and that they are not entitled to seek regularisation.

6. The learned Single Judge noted that the Board of the University on several occasions had recommended the regularisation of the daily-wage employees. However, the sole impediment cited by the University was the absence of consent from the State Government. The learned Single Judge concluded that such consent was unnecessary inasmuch as the financial burden was to be borne entirely by the University. It was also noted that the Board possessed the statutory authority to create non-teaching posts.

7. It was held that the action of the Government in bringing 171 employees under the purview of the Welfare Act amounted to deemed creation of sanctioned posts. The bar

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NC: 2026:KHC:20250 HC-KAR on regularisation as laid down in The Secretary, State of Karnataka and others v. Umadevi and others reported in (2006) 4 SCC 1 was not attracted in the present case. The writ petition was allowed, directing the University to regularise the services of 128 daily-wage workers.

8. The contempt proceedings against the appellants stem from the non-compliance of orders in W.P. No. 27478/2023 directing the University to regularise the respondents.

9. It is submitted by the learned counsel appearing for the appellants in W.A.No.711/2024 and W.A.No.742/2024 that the appellants herein were the petitioners in W.P.No.27469/2023 and 27478/2023, respectively. They were persons who had already been regularised in service by the University. It is submitted that on 13.08.2009 in Annexure 'F' Order produced in W.P.No.10632/2021 was passed, regularising the services of K.P. Raju and seven others. However, the claim made by the appellants for regularisation was rejected on 23.10.2008, which led to filing of W.Ps.No.11642-78/2012. By Order dated 20.04.2012, this Court directed the University to consider the case of the appellants for regularisation without reference to the impugned endorsement dated 23.10.2008.

When the said direction was not implemented, CCC No.2694-2708/2013 was filed. During the pendency of that proceeding, the University submitted a modified order of regularisation by which the services of the appellants were regularised. Recording the said order of regularisation, the

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NC: 2026:KHC:20250 HC-KAR contempt proceedings were closed on 22.06.2014. Thereafter, a review petition was filed before this Court, which was also rejected on 02.02.2016.

10. It is submitted that it was thereafter that the request of the 128 workers for regularisation was considered by the University and the University recommended such regularisation. However, the State Government passed an order dated 18.02.2019 directing the University to keep the resolution in abeyance and to reconsider the resolution. On 04.06.2019, the matter was reconsidered and the University reiterated that the regularisation of 128 employees was to be effected without casting any financial burden on the State Government. Further communications occurred, however, the State refused to grant permission for regularisation on the ground that the benefit of the Welfare Act had been extended to the employees and that there was no sanction post to accommodate them. The 128 employees raised the question of parity and contended that earlier batches of identically situated employees had been regularised. As an answer to the said contention, it is submitted that the orders of regularisation of Sujatha Devi and 16 others were recalled.

11. The learned Single Judge considered the contentions advanced and found that the University had taken a clear decision to regularise the services of the employees and that no Government sanction for creation of the posts is required. The orders withdrawing the regularisation of Sujatha Devi and others was quashed and it was declared that the regularisation orders shall stand

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NC: 2026:KHC:20250 HC-KAR restored and all consequential monetary benefits shall be paid to the said employees within two months from date of receipt of the copy of the order.

12. In the appeals, the appellants contend that the learned Single Judge disregarded the mandatory requirements of Section 13(2)(XIII) of the University of Agricultural Sciences in Bangalore Act, 2010 ['University Act' for short] which allows for the creation of teaching and nonteaching posts only with prior Government approval. They contend that the judgment of the learned Single Judge ignores Section 3 of the Welfare Act, which only permits daily-wage employees, once notified under the Act, to continue on daily wages until the age of 60 and does not authorise their regularisation.

13. Despite the Act, the learned Single Judge assumed that sanctioned posts existed for the 128 daily wage employees and treated their continuation under the Welfare Act as equivalent to the creation of posts. It is submitted that the Government never created or sanctioned any Group-D posts for these workers and the finding of "deemed creation of posts" is completely unwarranted and unjustified.

14. The appellants further submitted that the respondent workers did not produce any appointment orders showing that they were initially appointed against sanctioned posts by a competent authority. Their engagement was purely on a daily-wage basis. Hence, their case squarely falls within the bar laid down in Umadevi's (supra), and reaffirmed in Vibhuti Shankar Pandey v. State of Madhya Pradesh &

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NC: 2026:KHC:20250 HC-KAR Ors., reported in (2023) 3 SCC 639, which prohibited regularisation of workers who were never appointed to sanctioned posts.

15. Shri B.S.Sachin, learned counsel appearing for the Univeristy in W.A.No.711/2024 and W.A.No.742/2024 has placed the following decisions:-

- M.P.Housing Board & Anr. v. Manoj Shrivastava, reported in 2006(2) Supreme 354;
- Union of India & Ors. v. Ilmo Devi & Anr., reported in 2021 o Supreme (SC) 596; and • Vibhuti Shankar Pandey v. The State of Madhya Pradesh & Ors., reported in 2023 o Supreme (SC) 96;

16. Shri M. Sreenivasa, learned counsel appearing for the University in W.A.No.629/2024 has placed the following decisions:-

- Smt. Sujata Devi R. and others v. Shri Bharathlal Meena and others decided on 17.01.2014 in C.C.C.No.2694-2708/2013;
- Smt. Sujata Devi R. and others v. Shri Bharathlal Meena and others decided on 23.04.2015 in C.C.C.No.2694-2708/2013; and • Smt. Sujata Devi R. and others v. Shri Bharathlal Meena and others decided on 21.08.2013 in C.C.C.No.633-647/2013.

17. Shri V. Lakshminarayana, learned senior counsel appearing for the private parties has brought to our notice the orders passed by the University regularising the services of identically placed employees. It is submitted that since the employees were continuing without any break for

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NC: 2026:KHC:20250 HC-KAR more than 30 years, the contention that the posts are not sanctioned is only a hyper-technical plea raised to deny the benefit of regularisation to the petitioners while identically placed persons have already been granted all benefits of regularisation. It is submitted that in several identical cases, the benefit of regularisation had been extended to persons who had completed 10 years of service after 01.07.1984 and such directions of the Court had been given full effect to. It is contended that since the writ petitioners were admittedly fully qualified and had been carrying out the duties in the posts for three decades and more, there is absolutely no bona fides in the contention that the posts are not available to accommodate them. It is further contended that then question of the power of the University to create administrative posts and to appoint persons to such posts has also been specifically decided with reference to the statutory provisions and no interference whatsoever is called for.

18. It is further submitted that their regularisation is justified based on long years of service as well as parity with similarly placed employees already regularised by the State and the University. Further, this position has been upheld and confirmed by the Apex Court in Malathi Das's case (Supra). It is submitted that the University itself regularised the respondent workers through an order dated 22.07.2024 pursuant to interim directions, and the State has regularised numerous comparable employees in other departments.

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19. It is contended that objections based on financial constraints, sanctioned posts, cut-off dates are misplaced, especially since the University possesses statutory power to create posts and had already resolved to regularise employees through its own funds. The withdrawal of earlier regularisation orders by the University is alleged to be improper. On these grounds, the respondents seek confirmation of the regularisation order and dismissal of the appeals.

20. Shri V. Lakshminarayana, learned senior counsel appearing for the private parties in W.A.No.705/2024 has placed the following decisions:-

- K.P.Raju & Ors. v. State of Karnataka, by order dated 31.03.2003 passed in W.P.Nos.13858-13857/2000;
- Smt. Premakala Shetty v. The Common Cadre Committee & Anr., by order dated 12.11.1998 passed in W.P.Nos.1338/1998 connected matters;
- State of Karnataka & Ors. v. T.B.Manjunath & Ors., reported in ILR 2003 KAR 2827;
- The State of Karnataka & Anr. v. Revanna S., by order dated 09.07.2019 passed in C.A.No.5292/2019;
- Jivanlala v. Pravin Krishna & Ors., reported in (2016) 15 SCC 747;
- Dhananjay Karmakar v. State of West Bengal & Ors., reported in (2015) 17 SCC 504;
- a • Malathi Das & Ors. v. Suresh & Ors., reported in (2014) 13 SCC 249;
- Sri. C.G.Jagadeesh v. The State of Karnataka & Ors., by order dated 23.04.2014 passed in W.P.No.54284/2013 (S-KAT);

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NC: 2026:KHC:20250 HC-KAR • The State of Karnataka v. Sri. R.Jagadeesh & Ors., by order dated 13.11.2013 passed in W.A.Nos.45/2013 & 3477-3482/2013 (S-RES);

- Dharam Singh & Ors. v. State of U.P. & Anr., reported in 2025 SCC online SC 1735;
- Raman Kumar & Ors. v. Union of India & Ors., by order dated 03.07.2023 passed in SLP(C).No.7898/2020;
- Ravi Verma & Ors. v. Union of India & Ors., by order dated 13.03.2018 passed in C.A.Nos.2795-2796/2018;
- Nagabhushana v. State of Karnataka & Ors., by order dated 19.07.2019 passed in W.P.No.44548/2016 (SRES);
- Sri. Nagendra S.G. & Ors. v. Dr. K.C.Veeranna & Ors., by order dated 30.04.2024 passed in C.A. No.5586/2024;
- The State of Karnataka & Ors. v. Mayanna Gowda M. & Ors., by passed in SLP(C)No.42180/2024;
- Jaggo v. Union of India & Ors., reported in 2024 SCC OnLine SC 3826;
- The State of Karnataka & Anr. v. K.Bhaghyalakshmi and Ors., by order dated 29.10.2013 passed in W.P.Nos.15716/2013;
- The Karnataka Casual & Daily v. The State of Karnataka & Ors., by order dated 22.09.1998 passed in W.P. Nos.12610/1993 & 28248-449/1998;
- The State of Karnataka & Anr. v. Shri Ningappa Gudagi, by order dated 24.03.2025 passed in P.No.1180/2024 (S-REG);
- Union of India & Ors. v. Central Administrative Tribunal & Ors., reported in (2019) 4 SCC 290;
- Nihal Singh & Ors. v. State of Punjab & Ors., reported in (2013) 14 SCC 65;

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NC: 2026:KHC:20250 HC-KAR • Om Prakash Banerjee v. The State of West Bengal & Ors., by order dated 19.05.2023 passed in C.A.No.4210/2023;

- State of Karnataka & Ors. v. Khatoonbi, by order dated 27.03.2019 passed in W.P.No.107600/2017 (SKAT);
- The Principal Secretary & Ors. v. Smt. Vijayamma, by order dated 30.10.2019 passed in W.P.No.4282/2012 (S-RES);
- P. Junjappa v. The Principal Chief Conservator of Forests, by order dated 17.03.2025 passed in W.P.No.6238/2020 (S-KSAT) connected matters;

- The State of Karnataka & Anr. v. M.A.Biradar & Anr., by order dated 04.09.2024 passed in W.P.No.100387/2023 (S-REG);
- Venkataraju V v. State of Karnataka, by order dated 10.03.2025 passed in W.P.No.4268/2022 (S-KSAT);
- Sri. Nagendra S.G. & Ors. v. Dr. K.C.Veeranna & Ors., by order dated 30.04.2024 passed in C.A.No.5586/2024;
- Karnataka Veterinary Animal & Fisheries Sciences University v. Someshwara and Ors., by order dated 16.10.2024 passed in C.A.No.5586/2024;
- The Chief Secretary & Ors. v. Mahadevappa, by passed in SLP (C) NO.4469/2022;
- Sri. Mahadevappa v. The Chief Secretary & Ors., by order dated 17.11.2022 passed in CCC No.100149/2021;
- The State of Karnataka v. A.K.Vasantha & Ors., by order dated 13.01.2003 passed in W.P.No.793-796/2003(S-KAT);
- Sri. Venkataraju V. v. State of Karnataka & Ors., by order dated 10.03.2025 passed in W.P.No.4268/2022 (S-KSAT);
- The State of Karnataka & Anr. v. Shri Ningappa Gudagi, by order dated 24.03.2025 passed in W.P.No.1180/2024 (S-REG);

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NC: 2026:KHC:20250 HC-KAR • The Secretary to Govt. v. Dr. Parappa Shankarappa, by order dated 30.09.1999 passed in W.A.Nos.968/1998, 108/1986 & 1108-29/1999; and • The University of Agricultural Sciences v. Dr. Digambarappa & Ors., by order dated 24.06.2022 passed in W.A.Nos.100263-100264/2022 (S-RES).

21. Shri. I. Tharanath Poojary, learned senior counsel appearing for the private parties in W.A.No.711/2024 and W.A.No.742/2024 would submit that in view of the fact that the private respondents had been regularised in service after considering all relevant aspects of the matter, the withdrawal of the regularisation after 5 years was completely unjustified. It is further contended that the fact that their services had been regularised, had been submitted before this Court in a pending Contempt of Court Case and the Contempt of Court Case had been closed recording the said submission. Thereafter, a review petition was attempted which was also rejected. It is submitted that in the above circumstances, the order recalling the regularisation amounts to a contempt in the face of the Court and cannot be sustained under any circumstances.

22. Shri I. Tharanath Poojary, learned senior counsel appearing for Workmen in W.A.No.711/2024 and Complainants in C.C.C.No.646/2024, has placed the following decisions:-

- K.P.Raju and Ors. v. State of Karnataka and Ors., by order dated 31.03.2003 passed in W.P.Nos.13858- 13867/2000;

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NC: 2026:KHC:20250 HC-KAR • Dharam Singh & Ors. v. State of U.P. & Anr., reported in 2025 SCC online SC 1735;

- State of Jammu and Kashmir & Ors. v. District Bar Association, reported in (2017) 3 SCC 410;

- Malathi Das and Others v. Suresh and Others, reported in (2014) 13 SCC 249;

- The State of Karnataka & Anr. V. Revanna S., by order dated 09.07.2019 passed in C.A.No.5292/2019;

- Hanumantharayappa V. and Ors. v. Principal Secretary, Higher Education Department, Government of Karnataka and Another., reported in 2022 SCC online KAR 553;

- Secretary, State of Karnataka & Ors. v. Umadevi & Ors., reported in (2006) 4 SCC 1;

- Dharwad Distt. P.W.D. Literate Daily Wage Employees Association & ors. v. State of Karnataka • & ors., reported in (1990) 2 SCC 396;

- Smt. Sujatha Devi R., v. Bharathlal Meena & Ors., by order dated 17.01.2014 passed in CCC.2694/2013; and • State of Karnataka & Ors. v. M.L.Kesari & Ors., reported in (2010) 9 SCC 247.

23. Having considered the contentions advanced, we notice that the only question that requires examination in the instant case is whether the judgment of the learned Single Judge which directed the regularisation service of the writ petitioners, who had admittedly been working for more than 30 years in the University requires any interference.

24. The ground on which the request for regularisation was rejected by the Government was that the posts were not created after obtaining sanction from the Government. The learned Single Judge, considering the

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NC: 2026:KHC:20250 HC-KAR contentions advanced, as also the judgments of the Apex Court, found that the very fact that the service of the petitioners had been continued without break for more than 30 years would show that the posts are in existence and the University cannot function without the services of the writ petitioners.

25. Further, relying on Sections 7, 10, and 11 of the University Act, it was found that the substantive provision of the enactment confers power on the University to create the posts and in the light of the proposal forwarded by the University, which specifically stated that the entire expenditure would be borne by the University, no sanction is required for the creation of course or the regularisation of the employees.

26. The learned Additional Advocate General submits that the present arguments advanced by the University are to the effect of that the Government is required to fund the expenditure of regularisation. It is submitted that the Government has no objection to the University regularising the services of the writ petitioners provided the Government is not mulcted with the financial liability of such regularisation. However, it is contended that the finding of the learned Single Judge that the grant of the benefits under the Welfare Act amounts to "deemed sanctioning of posts" will have unforeseen consequences in other cases where posts do not exist and that the said finding should be vacated.

27. Having considered the contentions advanced, we notice that the appeals are preferred only by the

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NC: 2026:KHC:20250 HC-KAR University and no appeal is filed by the Government. It is clearly stated by the learned Additional Advocate General that the Government has no objection to the regularisation if the University takes on the financial responsibility. We notice that the University itself had repeatedly raised the request for regularization of the petitioners and similarly situated employees stating that their services are required and that they are fully qualified to hold their respective posts. The learned Single Judge clearly held that there is power in the University to create administrative non-teaching posts which are required for conduct of the University. This was the contention of the University as well.

28. The writ petitioners are admittedly persons employed in Group-C and Group-D posts and whose services have been continued without a break for more than 30 years. The proposals forwarded by the University would specifically show that they had intended to regularise the services of the employees and to meet the expenses of such regularisation from the funds available with University.

29. In Dharam Singh's case (supra), the Apex Court observed that:-

"When public institutions depend, day after day, on the same hands to perform permanent tasks, equity demands that those tasks are placed on sanctioned posts, and those workers are treated with fairness and dignity. The controversy before us is

not about rewarding irregular employment. It is about whether years of ad hoc engagement, defended by shifting excuses and pleas of financial strain, can be used to deny the rights of those who have kept public institutions running. We resolve it by insisting that the public employment should be organised with fairness,

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NC: 2026:KHC:20250 HC-KAR reasoned decision-making, and respect for the dignity of work."

It was further held that refusal to sanction posts cannot be immune from judicial scrutiny for arbitrariness. It was emphasized that State cannot balance budgets on those who perform the most basic and recurring public functions.

In Jaggo's case (supra), the Apex Court has held at paragraphs No.20 and 27 as follows:-

"20. It is well established that the decision in Uma Devi (supra) does not intend to penalize employees who have rendered long years of service fulfilling ongoing and necessary functions of the State or its instrumentalities. The said judgment sought to prevent backdoor entries and illegal appointments that circumvent constitutional requirements. However, where appointments were not illegal but possibly "irregular," and where employees had served continuously against the backdrop of sanctioned functions for a considerable period, the need for a fair and humane resolution becomes paramount. Prolonged, continuous, and unblemished service performing tasks inherently required on a regular basis can, over the time, transform what was initially ad-hoc or temporary into a scenario demanding fair regularization. In a recent judgment of this Court in Vinod Kumar v. Union of India, it was held that procedural formalities cannot be used to deny regularization of service to an employee whose appointment was termed "temporary" but has performed the same duties as performed by the regular employee over a considerable period in the capacity of the regular employee. The relevant paras of this judgment have been reproduced below:

"6. The application of the judgment in Uma Devi (supra) by the High Court does not fit squarely with the facts at hand, given the specific circumstances under which the appellants were employed and have continued their service. The reliance on procedural formalities at the outset cannot be used to perpetually deny substantive rights that have accrued over a considerable period through continuous service. Their promotion was based on a specific notification for vacancies and a subsequent circular, followed by a selection process involving written tests and interviews, which distinguishes their case from

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NC: 2026:KHC:20250 HC-KAR the appointments through back door entry as discussed in the case of Uma Devi (supra).

7. The judgment in the case Uma Devi (supra) also distinguished between "irregular" and "illegal" appointments underscoring the importance of considering certain appointments even if were not made strictly in accordance with the prescribed Rules and Procedure, cannot be said to have been made illegally if they had followed the procedures of regular appointments such as conduct of written examinations or interviews as in the present case..."

27. In light of these considerations, in our opinion, it is imperative for government departments to lead by example in providing fair and stable employment. Engaging workers on a temporary basis for extended periods, especially when their roles are integral to the organization's functioning, not only contravenes international labour standards but also exposes the organization to legal challenges and undermines employee morale. By ensuring fair employment practices, government institutions can reduce the burden of unnecessary litigation, promote job security, and uphold the principles of justice and fairness that they are meant to embody. This approach aligns with international standards and sets a positive precedent for the private sector to follow, thereby contributing to the overall betterment of labour practices in the country."

30. In the instant case, the fact that the writ petitioners were working without break in non-teaching posts in Group C and D under the University is not in dispute. The learned Single Judge had considered the contentions advanced and had examined the provisions of the University Act and held that the substantial power was conferred to the University to create non-teaching posts. This Court in The State of Karnataka & Anr. v. Revanna S., by order dated 09.07.2019 passed in C.A.No.5292/2019, has clearly held

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NC: 2026:KHC:20250 HC-KAR that grant of benefits under the Welfare Act, 2012 cannot be a reason to deny regularization in deserving cases.

31. The judgments relied on by the learned Senior Counsel appearing for the writ petitioners would apply with all force to the facts of these cases. It is clear that the judgment of the Constitution Bench in Umadevi's case (supra) cannot be made an instrument of oppression to deny regularisation after extracting service for decades on end. Further, we are also in agreement with the proposition that the grant of benefits under the Welfare Act cannot be a ground to deny the substantial relief of regularisation.

32. We notice that the real import of the judgment of the Apex Court in Uma Devi's case (supra), was that the State and public authorities should not facilitate back door entry into public employment by-passing the tenets of fairness and equal opportunity in public employment and the principles of merit and reservation. The Apex Court has repeatedly held that the judgment of the Constitution Bench cannot be used as a weapon of oppression by the very same authorities who had initially made the daily wage appointments without following due procedure, to deny equal pay and

service benefits to employees whose services have been utilized, without break, for decades. The fact that benefits under the Welfare Act, 2012 have been extended to the employees can also not stand in the way of their regularisation in view of the clear stand repeatedly taken by the University.

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NC: 2026:KHC:20250 HC-KAR

33. However, we make it clear that the finding that the grant of benefits under the Welfare Act amounts to grant of Government Sanction for creation of posts cannot be a sound legal proposition. The said observation is vacated. We hold that the hyper-technical contentions that the posts have not been created with Government Sanction cannot stand in the way of regularization of the writ petitioners services.

34. In the above circumstances, the appeals fail, the same are accordingly dismissed. The directions of the learned Single Judge shall be complied with, within a period of three months.

CCC No. 646/2024 is accordingly closed with liberty to the complainants to reopen the CCC, if the directions are not fully complied with, within a period of three months from the date of receipt of a copy of this Judgment.

Pending interlocutory applications shall stand disposed of in all the cases."

16. In the instant case, it is necessary to state that subsequent to the Special Leave Petition filed by the petitioner being dismissed by the Apex Court as stated supra, the respondent-University addressed a communication dated 21.05.2025 to the respondent-State bringing to the notice of the respondent-State that in its Resolution of 406th meeting and the legal opinion obtained by the University, it was resolved to

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NC: 2026:KHC:20250 HC-KAR reappoint the petitioner on humanitarian grounds as an Assistant Professor considering her service of 11.5 years in the post which is already sanctioned by the Government and in the light of judgments of the Apex Court, this court and other High Courts.

The aforesaid communication dated 21.05.2025 at Annexure-R1 reads as under:

"PÀÈ¶ «±Àé«zÁâ»®AiÀÄ, "ÉAUÀ¼ÀÆgÄÄ PÄÄ®, ÄaªÀgÀPÀbÉÃj, UÁA¶ü PÀÈ¶ «eÁÕ£À PÉÃAzÀæ, "ÉAUÀ¼ÀÆgÄÄ - 560 065 UNIVERSITY OF AGRICULTURAL SCIENCES, BANGALORE Office of the Registrar, Gandhi Krishi Vignana Kendra, Bengaluru No.AO/RT/Ramya H.N./2025-26 Date: 21-05-2025 To, The Secretary to Government, Agriculture Department, Karnataka Government Secretariate, M.S. Building, Dr. B.R. Ambedkar Road, Bengaluru - 560 001.

[reg. Post Ack. Due] Sir/Madam, Sub: Case of Mrs. Ramya H.N., for the post of Assistant Professor of Agricultural Engineering Reg.

Ref: 1. This Office Letter No.AO/RT/RHN/Court Case/2024-25 dated: 02-04-2024.

2. Your Letter No.AGRI/15/AUB/2024 dated: 13-09-2024.

3. Minutes of 405th Meeting of the Board of Management, UAS, Bangalore held on 30-01-2025

4. Legal Opinion dated: 17-04-2025 of the UAS, Legal Counsel.

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5. Minutes of 406th Meeting of the Board of Management, UAS, Bangalore held on 23-04-2025.

><><><>< With reference to the subject cited above, I write to sought permission of the Government on the following matter.

University had sought permission and Approval of the Government of accommodating Mrs. Ramya H.N., purely on humanitarian ground to the existing vacant post of Assistant Professor of Agricultural Engineering through letter dated 02- 04-2024 (Ref: 01 - Copy enclosed) In response to University letter dated: 02-04-2024, the Government through its letter dated 13.09.2024 has informed the University as below (Ref: 02 - Copy enclosed) "aÉÄÄ®ÏAqÀ «µÄAiÄÄPÉÏ ,ÄAŞAçü¹zÄAvÉ, G⁻ÉèÄTvÄ vÄªÄÄä PÄqÉ UÄªÄÄ£ÄªÄ£ÄÄß ,É¼ÉAiÄÄ⁻ÄVzÉ. ,ÄzÄj ¥ÄvÄæzÄ°è ²æÄªÄÄw gÄªÄiÄª °ÉZi.JEï. gÄªÄgÄ£ÄÄß ,ÄAYÄÆtðªÄVªÄiÄ£Ä«ÄAiÄÄvÉ CrªÄÄAdÆgÁV SÁ°-ÄgÄÄªÄ (PÄÈ¶ EAfªAiÄÄjAUï) ,ÄªÄiÄÄPÄ ¥ÄæzÄs ¥ÄPÄgÄ °ÄZÉYUÉ £ÉÄ«Ä,Ä®Ä CªÄPÄ±Ä PÄª,ÄÄªÄAvÉ ,ÄPÄðgÄzÄ ,ÄªÄÄwAiÄÄ£ÄÄß PÉÆÄgÄ⁻ÄVgÄÄvÄÜzÉ.

¥Äæ,ÄÜªÄ£ÉAiÄÄ£ÄÄß ¥Äj²Ä°,Ä⁻ÄV, ²æÄªÄÄw gÄªÄiÄª °ÉZi.JEï.gÄªÄjUÉªÄiÄ£Ä«ÄAiÄÄvÉ CrªÄÄAdÆgÁV SÁ°-ÄgÄÄªÄ (PÄÈ¶ EAfªAiÄÄjAUï) ,ÄªÄiÄÄPÄ ¥ÄæzÄs¥ÄPÄgÄ °ÄZÉYUÉ £ÉÄ«Ä,ÄªªÄ ¥Äæ,ÄÜªÄ£ÉAiÄÄ£ÄÄß ¥ÄjUÄtÄ,Ä®ÄªAiÄªÄiÄª¼UÄ¼Ä°è CªÄPÄ±Ä«gÄÄªÄ®®èªÉAzÄÄ vÄªÄÄÜÉw½,Ä®Ä£ÄÄªªZÉÄ²,Ä®ÄnÖZÉYÄ£É."

A detailed item was placed enclosing the opinion furnished by the Government of Karnataka to the 404th Meeting of the Board of Management UAS, Bangalore for taking a decision. The Board of Management in its 405th Meeting held on 30-01-2025, after deliberations decided as follows (Ref: 03 Copy enclosed):

Item No.08: The case of Mrs. Ramya H.N. for the post of Assistant Professor of Agril Engineering.

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NC: 2026:KHC:20250 HC-KAR The Board took the cognizance of the Government letter regarding Mrs. Ramya H.N. to place her in suitable vacant position with same subject and category, the Government has declined stating non-existence of suitable provisions of under humanitarian grounds.

During the deliberations, the Board noted that, the Hon'ble High Court of Kerala has delivered verdict in W.P.No.229 of 2017 related to Sivanandan C.T. and Others (petitioners) Vs High Court of Kerala and others (respondents) ordered that "Candidates who have been selected nearly six years ago cannot be unseated."

Further, in a Civil Appeal Nos 6233-6234 of 2023 (arising out of SLP (C) Nos 15522-15523 of 2021), the Hon'ble Supreme Court upheld the Hon'ble High Court of Kerala's decision and given Verdict stating that, "Candidates who have been selected nearly six years cannot be unseated. They were all qualified and have been serving the district judiciary of the state. Unseating them at this stage would be contrary to public interest."

Under these circumstances, the Board of Management decided to seek Legal Opinion;

"Whether Mrs. Ramany, H.N., can be placed against suitable vacant position at College of Agricultural Engineering, ensuring same subject and category, on the similar lines of Hon'ble Court verdict in the said W.P.No.229 of 2017 and Civil Appeal 6233-6234 of 2023 and to present it to before the Board to take a final decision."

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NC: 2026:KHC:20250 HC-KAR Pursuant to the decision of the 405th meeting of the Board of Management, University has once again sought legal opinion from the UAS Legal Counsel in the matter. The Advocate has furnished his considered opinion on 17-04- 2025 (Ref: 04 copy enclosed) which is extracted as follows:

"I am of the considered opinion that, in view of the aforesaid judgments rendered by the Hon'ble Supreme Court of India, in the matter of Sri. H.C. Puttaswamy and Others V/s the Hon'ble Chief Justice High Court of Karnataka reported in 1991 SUPP (2) SCC Page 421 and various others Judgments, the University is required to consider her case for appointment on humanitarian grounds either by creating a supernumerary post or against a clear sanctioned post by placing the matter before the Board of Management to take a decision & proceed further in the matter on obtaining the approval of the Govt."

An item was placed to the 406th Meeting of Board of Management of UAS Bangalore for taking a decision enclosing the Legal Opinion dated 17-04-2025. The board of Management in its 406th Meeting held on 23-04-2025, after deliberations decided as follows (Ref: 65 copy enclosed) The Board took note of various judgments of High Court of Kerala vide w.p.No. 229 of 2017 related C T Shivanandan and others Vs High Court of Kerala and other respondents ordered that "Candidates who have been selected nearly six years ago cannot be unseated. Further, in a Civil appeal Nos 6233-6234 of 2023 arising out of SLP © Nos15522-15523 of 2021, the Hon'ble Supreme Court

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NC: 2026:KHC:20250 HC-KAR upheld the decision of Hon'ble High Court of Kerala and given a verdict stating that "Candidates who have been selected nearly six years ago cannot be unseated. Unseating them at this stage would be contrary to public interest since they have gained experience at judicial officers in the service of the State of Kerala. Unseating them would, besides being harsh result in a situation where the higher judiciary would lose the services of duly qualified candidates who have gained experience over the last six years in the post of District Judge." To induct the petitioners would be to bring in new candidates in preference to those who are holding judicial office for a length of time. To deprive the stateits citizens of the benefits of these experienced judicial officers at a senior position would not be in public interest." Further, there are several cases of challenging the appointments in various High Courts and also in Hon'ble supreme court. To quote a few.

Sri H. C. Puttaswamy and others Vs Hon'ble Chief justice of High Court of Karnataka reported in 1991 supp (2) supreme court cases 421 held that "one could only imagine their untold miseries and of their family if they are left at the midstream. Indeed it would be an act of cruelty at this stage to ask them to appear for written test and viva voce for fresh selection. The precedents apart, the circumstances of this case justify a humanitarian approach and indeed, the appellants seem to deserve justice ruled by mercy We take note of the fact that the writ petitioners also would be appointed in the High court as stated by learned Advocate General of the State."

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NC: 2026:KHC:20250 HC-KAR With due consideration to the judgments of Hon'ble High courts and Hon'ble Supreme court, the case of the reappointment of Mrs H.N. Ramya shall be considered positively since she has put in an unblemished service of 11.5 years at College of Agriculture, Hassan as Asst. Professor. As per judgments not to unseat any person who has served continuously for six years, it becomes inhuman to terminate any person from service who has put in six years service. In view of the above, Mrs. H N Ramya shall be reappointed as Asst. professor of Agricultural Engineering at College of Agriculture considering her service of 11.5 years and in the light of Hon'ble court judgments.

The Board deliberated the item at length and considered various issues pertaining to the subject and decided to appoint Mrs. H.N. Ramya as Asst. Professor of Agricultural Engineering at College of Agriculture, Hassan after seeking the opinion of the Government in the light of judgments cited

YÄÄÉÄgi ÉÉÄ^aÄÄPÄ^a ÄiÄqÄÄ^aÄ YÄæ, ÁÛ^aÄÉÉUÉ, ÄÄSÄçü¹zÄAvÉ, ÉÉÄ^aÄÄPÄw
 xÄiÄi^aÄiÄ^aÄ^{1/2}ÄiÄÄ^oè "ÄiÄÉÄÄÄÄiÄÄ ÉÉ⁻ÉÄiÄÄ^oè YÄÄÉÄgi ÉÉÄ^aÄÄPÄw" UÉ
 , ÄÄSÄçü¹zÄAvÉ ÄiÄiÄ^aÄÄzÉÄ «zsÄÉÄUÄ^{1/2}®è. F YÄæPÄgÄtPÉÏ, ÄÄSÄçü¹zÄAvÉ,
 , Ä^aÉÇÄðZÄÑ ÉÄÄÄiÄiÄ®ÄiÄÄzÄ wÄ|ðÉÄ®Æè, Ä^oÄ ÉÉÄ^aÄÄPÄwÄiÄÄÉÄÄB
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 °ÄÄzÉYUÉ YÄÄÉÄgi ÉÉÄ^aÄÄPÄ^a ÄiÄqÄÄ^aÄ YÄæ, ÁÛ^aÄÉÉÄiÄÄÉÄÄB
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^aÄÄÄAzÄÄ^a ÄgÉzÄÄ, , ÄzÄj ÉÉÄ^aÄÄPÄwÄiÄÄ^oè ⁻ÉÄÄYÄ J, ÄVzÄ
 CçüPÄj/¹§ÄAçUÄ^{1/4}Ä «gÄÄzÄP DzÄävÉ ÄÉÄÄ⁻É, ÄÆPÄÛ², ÄÄÛ PÄæ^aÄÄ
 dgÄÄV, ÄÄ^aÄAvÉ °ÄUÄÆ PÉÉUÉÆAqÄ PÄæ^aÄÄ zÄ ÄÄgÄçÄiÄÄÉÄÄB MAzÄÄ
 wAUÄ^{1/4}ÉÄÉ^{1/4}ÄUÄV, ÄPÄðgÄPÉÏ, Ä^oè, ÄÄ^aÄAvÉ vÄ^aÄÄäÉÄÄB PÉÆÄgÄ®Ä
 xzÉÄð², Ä®änÖzYÉ ÄÉÉ.

F YÄvÄæ^aÄÉÄÄB DyðPÄ E⁻ÄSÉÄiÄÄÄ nYÄàtÄ, ÄASÉä: DE 555 ÄÉZÄÑ- 4/2025,
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vÄ^aÄÄä ÉÄÄSÄUÉÄiÄÄ, (eÉÄÄÉi YÄæPÄ±i gÉÆÄræUÄ, i), ÄPÄðgÄzÄ CçüÄÉÄ
 PÄÄiÄÄðzÄð, PÄÈ¶ E⁻ÄSÉ (, ÉÄÉUÄ^{1/4}ÄÄ)"

18. A perusal of the said communication will clearly indicate that the same is a cryptic, laconic, unreasoned and non-

speaking and except stating that the petitioner was unsuccessful in the earlier round of litigation, no other reasons are assigned by the

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NC: 2026:KHC:20250 HC-KAR respondent-State so as to reject the request made by the respondent-University. It is also pertinent to note that the various judgments referred to in the resolution of the respondent-University i.e., Board of Management of the respondent-University, the specific assertion made by the respondent-University that it intends to reappoint the petitioner on humanitarian grounds taking into account the fact that there was an existing vacant post and that the petitioner had put in 11.5 years of unblemished service have not even been adverted to or considered nor appreciated by the State Government while issuing the said communication at Annexure R2, which undisputedly forms the basis for the University to issue the impugned endorsement at Annexure-J, refusing to accede to the request made by the petitioner. Under these circumstances, I am of the considered opinion that the impugned endorsement at Annexure-J as well as the communication at Annexure-R2 deserve to be quashed and the matter is remitted back to the respondent-

State for reconsideration afresh by issuing certain directions.

19. Insofar as the contention urged by the learned Senior counsel for the petitioner that it is the University alone which is competent and authorised to appoint persons such as petitioner to

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NC: 2026:KHC:20250 HC-KAR the undisputed sanctioned post and the contention urged on behalf of the learned AGA that the said aspect with regard to issue/question as to whether the University or State, which has power or competency to appoint the petitioner are concerned, the said aspects would have to be considered by the State Government bearing in mind the provisions contained in Sections 7(10) ad 13(xiii) of the said Act of 2009 while passing appropriate orders as stated supra.

20. In the result, I pass the following:

ORDER

i) The petition is allowed.

ii) The impugned letter / endorsement at Annexure-J dated 31.10.2025 issued by the respondent - University and the impugned letter/communication at Annexure-R2 dated 03.09.2025 issued by the respondent-State are hereby quashed.

iii) The matter is remitted back to the respondent-State for reconsideration of the Communication at Annexure-C dated

21.05.2025 submitted by the respondent-University, afresh bearing in mind the judgments/orders in the cases of the Secretary to Govt. Vs. Dr. Parappa Shankarappa and others -

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NC: 2026:KHC:20250 HC-KAR W.A.No.968/1998 & W.A.No.1083-86 and W.A.No.1108-29/99 dated 30.09.1999 (Annexure-G), the University of Agricultural Sciences Vs. Sri. Dr. Digambarappa and others -

W.A.No.100263/2022 C/w. W.A.No.100264/2022 - dated 24.06.2022 (Dharwad Bench) (Annexure-H), State of Uttar Pradesh Vs. Preetam Singh and others - (2014) 15 SCC 774, the Registrar and others Vs. Sri. Chikkanna and others -

W.A.No.705/2024 & Con. Matters - dated 16.12.2025, within a period of six weeks from the date of receipt of a copy of this order.

iv) Immediately upon taking the decision in this regard, the respondent-State shall communicate the same to the respondent Nos.2 and 3-University, who shall communicate the same to the petitioner and take further steps in this regard within a period of four weeks thereafter.

Sd/-

(S.R.KRISHNA KUMAR) JUDGE BMC List No.: 2 Sl No.: 32